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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

JUNE 3, 2025

>> Mayor A. Ishii: CLERK, ARE WE READY TO GO? CLERK?

>> City Clerk: YES, WE CAN START. LET ME START THE RECORDING.

>> RECORDING IN PROGRESS.

>> City Clerk: ALL RIGHT.

>> Mayor A. Ishii: GOOD EVENING, EVERYONE. WE ARE GOING TO CALL TO ORDER THE MEETING OF THE BERKELEY CITY COUNCIL. TODAY IS TUESDAY, JUNE 3, 2025. ALL RIGHT. CLERK, CAN YOU PLEASE TAKE THE ROLE?

>> City Clerk: COUNCILMEMBER KESARWANI IS CURRENTLY ABSENT. COUNCILMEMBER TAPLIN.

>> T. Taplin: PRESENT.

>> City Clerk: BARTLETT.

>> B. Bartlett: HERE.

>> City Clerk: TREGUB.

>> I. Tregub: PRESENT.

>> City Clerk: O'KEEFE.

>> S. O'Keefe: HERE.

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>> City Clerk: BLACKABY.

>> B. Blackaby: HERE.

>> City Clerk: HUMBERT.

>> M. Humbert: HERE.

>> City Clerk: LUNAPARRA.

>> C. Lunaparra: HERE.

>> City Clerk: AND MAYOR ISHII.

>> Mayor A. Ishii: HERE. ALL RIGHT. SO IT IS THE FIRST MEETING OF THE MONTH, AND ACTUALLY, COUNCILMEMBER BLACKABY, IS IT YOUR TURN OR DID YOU DO THE LAST ONE?

>> B. Blackaby: I THINK I DID THE LAST ONE.

>> Mayor A. Ishii: IN THAT CASE, WE READ LAND ACKNOWLEDGMENT STATEMENT AT THE BEGINNING OF EACH FIRST MEETING OF THE MONTH, AND WE HAVE BEEN TAKING TURNS. THIS TIME IT IS COUNCILMEMBER LUNAPARRA. THANK YOU.

>> C. Lunaparra: THE CITY OF BERKELEY RECOGNIZES THAT THE COMMUNITY WE LIVE IN WAS BUILT ON THE TERRITORY OF XUCYUN, THE ANCESTRAL AND UNCEDED LAND OF THE CHOCHENYO-SPEAKING OHLONE PEOPLE, THE ANCESTORS AND DESCENDANTS OF THE SOVEREIGN VERONA BAND OF ALAMEDA COUNTY. THIS LAND WAS AND CONTINUES TO BE OF GREAT IMPORTANCE TO ALL OF THE OHLONE TRIBES AND DESCENDENTS OF THE VERONA BAND. AS WE BEGIN OUR MEETING TONIGHT, WE ACKNOWLEDGE AND HONOR THE ORIGINAL INHABITANTS OF BERKELEY, THE DOCUMENTED

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5,000 YEAR HISTORY OF A VIBRANT COMMUNITY AT THE WEST BERKELEY SHELLMOUND, AND THE OHLONE PEOPLE WHO CONTINUE TO RESIDE IN THE EAST BAY. WE RECOGNIZE THAT BERKELEY'S RESIDENTS HAVE AND CONTINUE TO BENEFIT FROM THE USE AND OCCUPATION OF THIS UNCEDED STOLEN LAND SINCE THE CITY OF BERKELEY'S INCORPORATION IN 1878. AS STEWARDS OF THE LAWS RGULATING THE CITY BERKELEY, IT IS NOT ONLY VITAL THAT WE RECOGNIZE THE HISTORY OF THIS LAND, BUT ALSO RECOGNIZE THAT THE OHLONE PEOPLE ARE PRESENT MEMBERS OF BERKELEY AND OTHER EAST BAY COMMUNITIES TODAY. THE CITY OF BERKELEY WILL CONTINUE TO BUILD RELATIONSHIPS WITH THE LISJAN TRIBE AND TO CREATE MEANINGFUL ACTIONS THAT UPHOLD THE INTENTION OF THIS LAND ACKNOWLEDGMENT.

>> Mayor A. Ishii: THANK YOU, COUNCILMEMBER. THIS EVENING, WE HAVE A FEW CEREMONIAL ITEMS, AND ALSO, TWO ADJOURNMENTS IN MEMORY. SO THIS EVENING WE ARE GOING TO START WITH THE ADJOURNMENT IN MEMORY OF ROBERT SHEPARD, WHO WAS A BERKELEY RESIDENT. AND I THINK THAT COUNCILMEMBER TREGUB, ARE YOU SPEAKING?

>> I. Tregub: YES. THANK YOU, MADAM MAYOR. TODAY, WE ADJOURN IN MEMORY OF ROBERT J. SHEPARD, A LONG-TERM RESIDENT OF BERKELEY WHO SADLY PASSED AWAY OF UNKNOWN CAUSES AFTER A LONG AND VALIANT BATTLE. HE GRADUATED FROM CASE WESTERN IN 1972 WITH A DEGREE IN ELECTRICAL ENGINEERING. AND WHEN HE MOVED TO THE BAY AREA, HE

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WORKED AT SEVERAL TECH COMPANIES INCLUDING APPLE AND SYBASE. AFTER HE RETIRED, HE WORKED AS A SUBSTITUTE TEACHER IN BERKELEY AND OAKLAND. HE WAS ACTIVE IN SEVERAL COMPUTER USER GROUPS AND WAS COMMITTED TO SOCIAL JUSTICE AND WAS INVOLVED IN LOCAL POLITICS, INCLUDING BERKELEY CITY ACTION FOR MANY YEARS AND IT WAS TO INVOLVEMENT IN THE CITY OF BERKELEY ACTION IS HOW I GOT TO KNOW HIM. HE WAS ALSO AN ACCOMPLISHED MUSICIAN AND ENJOYED ARRANGING MUSIC. HE TOOK ADVANCED CLASSES IN TRANSCENDENTAL MEDITATION AND TOOK SEVERAL TRIPS TO INDIA AND TIBET TO STUDY MEDITATION AND SPIRITUAL PRACTICES. WHILE STILL IN HIS TEENS, BOB BUILT HIS OWN RADIO TRANSMITTER AND STARTED A RADIO STATION IN HIS ATTIC. IN HIS EARLY 20S, HE OBTAINED HIS PILOT LICENSE. HE WAS ALSO INSTRUMENTAL IN STARTING CO-OPS AND STARTING IN CLEVELAND AND CONTINUING WHEN HE REMOVED TO THE BAY AREA. AS YOU CAN SEE, HE WAS A RENAISSANCE MAN AND I GOT TO KNOW HIM THROUGH OUR INVOLVEMENT IN BERKELEY CITIZENS ACTION, A PROGRESSIVE POLITICAL ORGANIZATION. WHAT ALWAYS STUCK OUT TO ME WAS HIS INCREDIBLE KINDNESS AND WISDOM. WHENEVER HE SPOKE, I KNEW THAT I BETTER LISTEN AND SO SHOULD EVERYONE IN THE ROOM BECAUSE HE WAS GOING TO DROP INCREDIBLE WISDOM ON US. AND WHENEVER WE HAD OUR DISAGREEMENTS AS POLITICAL ORGANIZATIONS OR FOLKS WITHIN THOSE ORGANIZATIONS DO, HE WAS ALWAYS THE PEACEMAKER. AND WHEN HE SPOKE, EVERYONE FOLLOWED HIS CALL TO FORGE CONSENSUS. THANK YOU

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SO MUCH FOR THE OPPORTUNITY TO RECOGNIZE BOB TODAY. A BEAUTIFUL SPIRITED WITH A CANE HEART AND INTELLECT. HE IS LOVED AND GRATEFULLY MISSED. THANK YOU.

>> Mayor A. Ishii: THANK YOU SO MUCH, COUNCILMEMBER. AND I BELIEVE HIS WIFE IS NOT HERE THIS EVENING TO SPEAK, SO I WILL MOVE ON TO THE OTHER ADJOURNMENT AND MEMORY, AND THAT IS FOR BILL DECARIAN. UNFORTUNATELY, COUNCILMEMBER KESARWANI IS SICK, SO I WILL BE READING THIS ON HER BEHALF. BILL DECARIAN WAS ONE OF THOSE CONSTITUENTS, AS IS HIS SURVIVING WIFE, EVELYN LARSON, WHO I BELIEVE IS WITH US TONIGHT. HI. THOSE WHO READ THE BERKELEY OBITUARY READ THAT BILL WAS THE FOUNDER OF -- OF ANY, WHOSE CERAMIC AND STONE TILE ADORN THOUSANDS OF BERKELEY HOMESTEAD BECAME A DRIVING BUSINESS DUE TO HIS EYE FOR DESIGN AND BUSINESS SKILLS. AND AS EARTHLY SIDE NOTES, BILL BECAME A FORCE IN WEST BERKELEY SHELLMOUND HIS EXPERTISE AND SKILLS WITH OTHERS AND HELPING ESTABLISH THE AREA AS A HUB FOR CONSTRUCTION AND DESIGN BUSINESSES, INCLUDING TERRY OUTDOOR AND THEY HOMES. HE EVENTUALLY OWNED SIX WAREHOUSES IN EAST BERKELEY, THREE OF WHICH HE BUILT. BILL WAS GENEROUS TO MANY ORGANIZATIONS AROUND HIM OFFERING HELP, ADVICE, MENTORING, AND FINANCIAL SUPPORT. HE HELPED EMPLOYEES AT HIS COMPANY BY HOMES, CARS, AND FUND PROJECTS. AGAIN, THIS IS FROM COUNCILMEMBER KESARWANI'S PERSPECTIVE. I CAME TO KNOW BOTH BILL AND EVELYN IN 2019 AFTER

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TAKING OFFICE. MANY OF BILL'S OFFICES ARE IN MY DISTRICT. BILL WAS ONE OF THOSE RARE INDIVIDUALS WHO EPITOMIZED THE POTENTIAL OF WEST BERKELEY INDUSTRY. A TRUE CRAFTSMAN, BUILDER, AND BUSINESSMAN. MY OFFICE GOT TO KNOW HIM AND EVELYN AS HE FOUNDED IMPORT TITLE COMPANY ON THE CORNER OF HEARST AND EAST SHORE HIGHWAY, AN AREA WHICH AT THAT TIME WAS IN NEED OF IMPROVEMENTS. AT ISSUE WAS A VERY SMALL PARCEL OF LAND THAT WAS THE FOCUS OF A THING – MIGHT HAPPEN TO BE ONE OF THE FIRST INTERSECTIONS ANYONE COMING FROM THE WEST BERKELEY 580 SOLVE CREATING A NEGATIVE IMPRESSION OF THIS AREA. THIS WAS MY FIRST FORAY INTO THE ART OF MOVING PROJECTS FORWARD WHEN MULTIPLE AGENCIES ARE INVOLVED, CAL TRANS AND THE CITY OF BERKELEY. FORTUNATELY, BILL WAS ALWAYS GRACIOUS AND QUICK TO HUMOR AND A JOY TO WORK WITH. I APPRECIATE HIS LOVE FOR WEST BERKELEY, HIS COMPASSION TOWARDS OTHERS. I WILL PERSONALLY MISS BILL AS I KNOW MANY OTHERS WILL AS WELL. THANK YOU. EVELYN, DID YOU WANT TO SAY ANYTHING?

>> YES.

>> Mayor A. Ishii: YOU CAN COME FORWARD TO THIS MIC HERE.

>> ALL RIGHT. NICE TO MEET YOU.

>> Mayor A. Ishii: NICE TO MEET YOU. THANK YOU FOR BEING HERE.

>> IT'S AN HONOR. THANK YOU OF. AND I WANT TO SAY THAT THIS WOULD GIVE BILL GREAT JOY TO BE RECOGNIZED IN THIS COMMUNITY. I HAPPEN TO HAVE SOME OF HIS WORDS ABOUT COMMUNITY THAT HE WROTE.

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THIS IS SOMETHING THAT HE WROTE IN A GUIDED AUTOBIOGRAPHY CLASS. HE STARTED IMPORT TITLE AND HE RAN IT FOR 40 YEARS, SO HE SOUNDS LIKE AN ORDINARY BUSINESSMAN, RIGHT? AHA. WELL, THIS IS WENDY HAD TO SAY ABOUT COMMUNITY AND WHY HE WORKED SO HARD TO MAKE IT BETTER THERE. ANOTHER LOVE I HAVE IS THE DESIRE TO SERVE OTHERS. THIS WILLINGNESS TO SERVE IS THE LIFEBLOOD OF OUR BUSINESS AND I WOULD CALL THIS LOVE OF COMMUNITY WHAT ARISTOTLE CALLED PHILIA. COMMUNITY IS AN ORGANIC BODY THAT RESPONDS TO EVERYBODY'S ACTIVITY, GOOD AND BAD, AND REQUIRES EVERYONE'S DEVOTION TO THE WHOLE. SHARED PROSPERITY IS THE RESULT OF PHILIA, WANTING THE BEST FOR OTHERS, AS WELL AS THE COMMUNITY. AND THAT'S WHO HE WAS TRULY. SO THANK YOU FOR RECOGNIZING HIM AND WORKING HARD TO MAKE THIS COMMUNITY BETTER. [APPLAUSE]

>> Mayor A. Ishii: THANK YOU. THANK YOU SO MUCH FOR SHARING HIS WORDS WITH US AND FOR BEING HERE THIS EVENING. WE ALSO HAVE THREE PROCLAMATIONS. THE FIRST IS FOR THE 2025 BERKELEY POETRY FESTIVAL LIFETIME ACHIEVEMENT AWARD. COUNCILMEMBER TAPLIN WILL BE PRESENTING THIS A PROCLAMATION. AND MK CHAVEZ AND -- WILL BE PRESENT AT THIS MEETING, CORRECT? OKAY. JUST MK. COUNCILMEMBER TAPLIN WILL READ THIS PROCLAMATION.

>> T. Taplin: THANK YOU, MADAM MAYOR. THANK YOU, EVERYONE. WHEREAS -- MULTIDISCIPLINARY ARTIST, LITERARY CURATOR, COLLABORATOR, AND COMMUNITY ORGANIZER AND WHEREAS SHE HAS BEEN

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TEACHING FOR 40 YEARS AND PRESENTLY TEACHES POETRY AT THE UNIVERSITY OF SAN FRANCISCO AND HAS TAUGHT AT CCA, FSU COLLEGE, AND ANY OF YEARS TEACHING ADULT COLLEGES -- AND HAS BEEN A GUEST SPEAKER AT UC BERKELEY, ST. MARY'S COLLEGE, AND JACKSON HOLE WRITERS CONFERENCE, -- WRITERS WORKSHOP AND OTHERS. WHEREAS SHE IS THE AUTHOR OF FIVE POETRY COLLECTIONS, PROGRESSING THE THINKING JAR, STORAGE UNIT FOR THE SPEAR AT HOUSE, AMNIDON 2020, SCORE AND BONE NOMADIC PRESS 2016, AND RUINS OF A GLITTERING PALACE, A COLLABORATING BOOK WITH -- SBA COMMONWEALTH -- LONG LISTED FOR THE PAN-AMERICAN 2021 OPEN BOOK AWARD AND SHORTLISTED FOR THE CALIFORNIA BOOKSELLERS ALLIANCE GOLDEN POPPY AWARD FOR POETRY, AND WHEREAS SHE HAS BEEN PUBLISHED IN NUMEROUS JOURNALS AND ON THEOLOGIES INCLUDING THE COMMON, THE MARGINS, POETRY DAILY, THE BANGALORE REVIEW, AND OTHERS AS WELL AS THE ANTHOLOGIES OF WOMEN IN A GOLDEN STATE, DEAR HUMAN AT THE EDGE OF TIME, RISE LIKE A WAVE, AND WHEREAS SHE SERVED AS THE INAUGURAL POET OF EL CERRITO. DURING HER TENURE SHE STARTED A READING SERIES AND HOSTED MULTIPLE COMMUNITY EVENTS, AND WHEREAS SHE HAS RECEIVED AWARDS AND HONORS AS A 2024 ALAMEDA EDUCATION ARTIST 2023 YBCA -- AND WHEREAS SHE IS A COFOUNDER WITH DON AND ANGELICA BARCELONA AND A TEACHING PLATFORM WHERE ARTISTS EMBRACE ONGOING COMMUNITY WITH OTHERS AND WHEREAS SHE HAS PERFORMED WIDELY IN THE BAY AREA AND BEYOND INCLUDING GRACE CATHEDRAL,

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RIVER WINTER GARDENS FESTIVAL, ASIA MUSEUM, POETRY FLASH, WATERSHED, BAMFA, BAY AREA BOOK FEST, MECHANICS INDUSTRY LIBRARY, CITY LIGHTS BOOKSTORE AND OTHER SPACES. NOW THEREFORE IT BE RESOLVED THAT I, DO HEREBY RECOGNIZE -- 2025 BERKELEY CITY FESTIVAL LIFETIME ACHIEVEMENT AWARD HE. [APPLAUSE]

>> THANK YOU SO MUCH. I'D LIKE TO THANK THE CITY COUNCIL AND MAYOR NOT JUST FOR YOUR SUPPORT AND RECOGNIZING HER THIS YEAR. WE GIVE THE LIFETIME ACHIEVEMENT AWARD EVERY YEAR AND YOU ALL SUPPORT US IN DOING THAT. WE RECOGNIZE WRITERS WHO ALSO CHANGEMAKERS IN OUR WORLD. THANK YOU SO MUCH. -- AND MIKE CODIRECTOR, SHARON COLEMAN, ARE NOT HERE TONIGHT BECAUSE WE ARE IN THE MIDDLE OF THE BERKELEY POETRY FESTIVAL. IF YOU WOULD LIKE TO JOIN US ON SUNDAY AT THE LIFETIME ACHIEVEMENT AWARD, YOU CAN DO SO BY GOING TO THE BERKELEY ART CENTER. WE WILL HAVE A BEAUTIFUL READING BY TIM DONNELLY AND OF COURSE -- WE WILL END WITH CAKE THAT HAS BEEN DONATED BY OTHER GENEROUS COMMUNITY MEMBERS. PLEASE JOIN US AND GO TO BERKELEY POETRY FESTIVAL.ORG TO SEE SOME OTHER EVENTS THAT WE ARE HOSTING THIS WEEK. THANK YOU. [APPLAUSE]

>> Mayor A. Ishii: THANK YOU. VERY APPROPRIATE TO HAVE COUNCILMEMBER TAPLIN GIVE THAT ONE SINCE HE IS A POET HIMSELF. THE NEXT ONE IS A PROCLAMATION FOR CHRISTINA MURPHY. AND I KNOW HER FAMILY IS HERE THIS EVENING. AND WE DID ADJOURN IN HER

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MEMORY IN THE MAY COUNCIL MEETING, BUT I MAY BE ABLE TO READ THE PROCLAMATION THAT WE CREATED FOR HER AS WELL. HONORING THE LIFE AND LEGACY OF CHRISTINA MURPHY. WHEREAS CHRISTINA MURPHY WAS A LIFELONG ADVOCATE FOR JUSTICE, COMPASSION, AND EQUITY DEEPLY ROOTED IN SOUTH BERKELEY AND DEDICATED HER LIFE TO UPLIFTING HER COMMUNITY THROUGH ACTION AND ADVOCACY. AND WHEREAS CHRISTINA WORKED AT THE BERKELEY DROP IN -- WITH CARE, DIGNITY, AND DIRECT SERVICES WHILE PLAYING A PIVOTAL ROLE IN FRIENDS OF ADELINE, ORGANIZING AGAINST DISPLACEMENT AND HOUSING INJUSTICE IN SOUTH BERKELEY. AND WHEREAS CHRISTINA WAS ELECTED TO THE RENT STABILIZATION BOARD AS PART OF A SLATE OF ADVOCATES BRINGING HER LIVED EXPERIENCE TO LOCAL POLICYMAKING. AND WHEREAS DURING HER TENURE ON THE RENT BOARD, CHRISTINA -- AND CONTRIBUTED TO THE OUTREACH COMMITTEE AND 4 X 4 JOINT COMMITTEE ON HOUSING CONSISTENTLY CENTERING THE NEEDS OF THE MOST VULNERABLE IN HER WORK AND WHEREAS CHRISTINA WAS WIDELY RESPECTED FOR HER FAIRNESS, HONESTY, AND UNYIELDING COMMITMENT TO THE PEOPLE OF BERKELEY, ADVOCATING FOR RENT CONTROL, UPLIFTING SMALL LANDLORDS, AND DEFENDING BLACK, UNHOUSED, LGBTQIA+, AND WHEREAS AFTER STEPPING DOWN FROM THE RENT BOARD, CHRISTINA CONTINUED HER WORK AS AN OUTREACH -- DIRECTLY ASSISTING -- WITH IF THE AND DETERMINATION. AND WHEREAS CHRISTINA' S ADVOCACY EXTENDED BEYOND HER ROLES AS SHE CHAMPION OF RACIAL JUSTICE, DISABILITY RIGHTS,

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HOUSING SECURITY, AND THE DIGNITY AND SAFETY OF ALL PEOPLE IN HER COMMUNITY, AND WHEREAS CHRISTINA'S LIFE EXAMPLE VIED A PROFOUND COMMITMENT TO JUSTICE, EQUITY, AND HUMANITY, TIRELESSLY UPLIFTING AND BEING A VOICE FOR THE VOICELESS, STANDING FOR WHAT WAS RIGHT WITH UNWAVERING COURAGE AND CLARITY. AND WHEREAS CHRISTINA IS REMEMBERED AS AN ON BOT AND UNBOXED CHAMPION FOR THE PEOPLE AND EMBODYING COMPASSION AND JUSTICE WITHOUT EGO OR FEAR. NOW THEREFORE IT BE RESOLVED THAT I, MAYOR ISHII, DO HEREBY PROCLAIM JUNE -- [APPLAUSE] THANK YOU. IN RECOGNITION OF HER EXTRAORDINARY LIFE, HER DECADES OF SERVICE AND ACTIVISM AND HER UNWAVERING DEDICATION TO JUSTICE AND EQUITY. THANK YOU. AS SOMEBODY WHO KNEW HER, I'M PRETTY PROUD TO BE SAYING THIS. THESE WORDS ARE 100% TRUE. I DON'T KNOW IF YOU HAVE ANY WORDS THAT YOU WOULD LIKE TO SHARE.

>> THANK YOU, MAYOR ISHII, AND COUNCILMEMBERS. I'M CHRISTINA'S SISTER. I SPOKE WITH YOU GUYS BEFORE. I'M GOING TO KEEP IT SHORT AND SWEET THIS TIME. I APPRECIATE YOU ALL FOR GIVING MY SISTER A SEAT AT THE TABLE AND ALLOWING HER TO SPEAK FOR THE PEOPLE AND TO SPEAK FOR OUR CITY. AND TO ALLOW HER AN OPPORTUNITY TO MAKE GOOD TROUBLE BECAUSE THAT'S WHAT SHE DO BEST. THANK YOU. [APPLAUSE] [APPLAUSE]

>> Mayor A. Ishii: OKAY. ALL RIGHT. WE HAVE ONE MORE PROCLAMATION. IT IS FOR BERKELEY PRIDE DAY, 2025. I KNOW WE'RE

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JUMPING AROUND A LOT HERE, FOLKS. I APPRECIATE YOU BEARING WITH ME. ALL RIGHT. BERKELEY PRIDE DAY, 2025. WHERE IS THE CITY OF BERKELEY, CALIFORNIA IN PARTNERSHIP WITH LOCAL COMMUNITY GROUPS, BUSINESSES, AND ORGANIZATIONS HOLDS A LONG TRADITION IN FORGING A SOCIETY THAT NURTURES THE LGBTQIA+ COMMUNITY, AND WHEREAS FOR MORE THAN 50 YEARS THE CITY OF BERKELEY HAS PROUDLY SERVED AS HOME AND PARTNER TO THE PACIFIC CENTER FOR GROWTH, THE LARGEST LGBTQIA+ AND PIONEERING PROVIDER FOR COMPASSIONATE MENTAL HEALTH SERVICES TO THE LOCAL LGBTQIA+ COMMUNITY THROUGH ACCESSIBLE, LOW-COST THERAPY, PEER SUPPORT GROUPS, EDUCATIONAL WORKSHOPS, ADVOCACY, AND OF THE PROGRAM THAT UPLIFTS HISTORICALLY MARGINALIZED AND UNDERSERVED MEMBERS OF OUR COMMUNITY AND PROMOTES THROUGH SELF-EXPRESSION. AND WHEREAS THE BERKELEY COMMITTEE HAS -- INEQUALITY AND WELL-BEING THROUGH GROUNDBREAKING STEPS SUCH AS THE UNIVERSITY OF CALIFORNIA BERKELEY OFFERING THE FIRST UNDERGRADUATE LGBTQIA+ STUDIES COURSE IN THE UNITED STATES IN 1970, BERKELEY BECOMING ONE OF THE FIRST CITIES IN THE NATION TO ESTABLISH A DOMESTIC PARTNERSHIP REGISTRY IN 1984, BERKELEY BECOMING THE FIRST AMERICAN CITY TO MAIL AIDS INFORMATION PACKETS EVERY RESIDENT IN 1987, AND BERKELEY EMERGING AS THE FIRST CITY IN THE UNITED STATES TO PROCLAIM BISEXUAL PRIDE AND BI VISABILITY DAY. THE CITY'S FIRST EVER PRIDE STREET FESTIVAL CELEBRATION FOR AUGUST

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16, 2025. WHEREAS THE CITY OF BERKELEY POSSESSES DEEP HISTORICAL TIES TO THE LGBTQIA+ PRIDE AND HAS CONSISTENTLY SPONSORED VIBRANT -- RANGING FROM THE 1973 E. BAY GAY FESTIVAL TO GAY DAY FESTIVITIES AT THE -- EVENTS IN NORTH BERKELEY. WHEREAS THE CITY OF BERKELEY IN PARTNERSHIP WITH THE CENTER OF GROWTH WHICH IS TO CODIFY ITS UNWAVERING SUPPORT OF THE LGBTQIA+ COMMUNITY AND TO HONOR THE COMMUNITY APOSTASY IS A VITAL ROLE IN CREATING A MORE OPEN AND INCLUSIVE CITY BY CONFIRMING GRATITUDE AND PRIDE, AND THEREFORE -- NOW THEREFORE IT BE RESOLVED THAT ME, MAYOR ISHII, DO PROCLAIM AUGUST 16, 2025 TO BE BERKELEY PRIDE DAY. [APPLAUSE] WE WILL BRING THAT TO THEM ON PRIDE SO WE CAN PRESENT IT THERE AS WELL. I JUST WANT TO SAY SINCE MANY OF US ON THE DAIS CONSIDER OURSELVES IDENTIFY AS BEING PART OF THE COMMUNITY AND MANY OF OUR STAFF, I THINK WE ARE PARTICULARLY PROUD TO HAVE THIS. SO THANK YOU ALL. SO WE ARE MOVING ON TO CITY MANAGER COMMENTS. CITY MANAGER, DO YOU HAVE ANY?

>> City Manager: NO COMMENTS, MATTER MAYOR.

>> Mayor A. Ishii: NO COMMENTS. WE WILL MOVE ON TO PUBLIC COMMENTS ON NON-AGENDA MATTERS.

>> City Clerk: SO THERE WILL BE FIVE IN PERSON SPEAKERS FROM THE NAMES DRAWN FROM THE DRUM AND THERE WILL BE FIVE SPEAKERS THAT ARE ON THE ZOOM. IF I CALL YOUR NAME YOU CAN COME UP TO SPEAK. AND THIS IS FOR PUBLIC COMMENTS ON ITEMS THAT ARE NOT ON THE

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AGENDA. SO THE FIVE NAMES ARE STEVE TRACY, ALLISON BOND, GINA RIEGER, SUSAN SILBER, AND NICHOLAS ALEXANDER. SO YOU CAN COME UP AND LINEUP ON THE SIDE OVER HERE IN ANY ORDER. AND AGAIN, THIS IS FOR ITEMS THAT ARE NOT ON THE AGENDA. IF YOU ARE SPEAKING TO AN ITEM ON THE AGENDA, THAT PUBLIC COMMENT WILL BE LATER ITEM COMES UP BEFORE THE COUNCIL.

>> Mayor A. Ishii: THANK YOU, CLERK. GO AHEAD. IF YOUR NAME HAS BEEN CALLED, YOU CAN COME ON UP. THANK YOU. OKAY. AHEAD WHENEVER YOU'RE READY FOR YOUR COMMENTS.

>> City Clerk: PLEASE START SPEAKING. THANK YOU. GO AHEAD.

>> [INDISCERNIBLE]

>> City Clerk: OKAY, WELL THEN MAYBE SOMEBODY ELSE SHOULD GO FIRST THEN.

>> Public Speaker: STEVE TRACY. I LIVE ON EUCLID. QUICK TENT COUNT. 36 UP FROM 31 A MONTH AGO. UP FROM 21 IN MARCH. THE HANDOUT YOU ARE GETTING IS CHANNEL 9 QKAD. PRIOR THREE MONTHS CAMPING AT CIVIC. SIX MONTHS AGO THE MAN LIVED IN STOCKTON, CALIFORNIA, BUT HE IS VERY APPRECIATIVE THAT THE CITY OF BERKELEY PAID FOR 28 DAYS IN A MOTEL. WHY IS HE BACK IN OHLONE? TURN TO THE LAST PAGE. I JUST DON'T LIKE THE CONFINEMENT. I'D RATHER BE LIVING IN THE OPEN. HE PLANS TO MOVE TO A DIFFERENT ENCAMPMENT WHEN OHLONE IS CLOSED. THE CITY IS $27 MILLION SHORT. IT IS NO LONGER FEASIBLE TO OFFER SHELTER TO ALL. COUNCIL, WHAT

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YOU'RE DOING IS NOT OKAY. [BEEPING]

>> Mayor A. Ishii: THANK YOU. GO AHEAD. NEXT SPEAKER.

>> Public Speaker: HI. MY NAME IS GINA RIEGER. THIS IS A QUOTE FROM THE BERKELEY SCANNER. MORE THAN 100 PEOPLE CROWDED INTO THE SENIOR CENTER TO STRATEGIZE ABOUT HOW TO ADDRESS PROBLEMATIC BEHAVIOR IN OHLONE PARK LINKED LARGELY TO THE AREAS GROWING HOMELESS POPULATION. THAT WAS PUBLISHED IN 2015, 10 YEARS AGO. WE'RE NOT A PROGRESSIVE CITY. WE HAVE REGRESSED. LAST WEEK, WHILE THE TUB LISTED BERKELEY AS THE THIRD LEAST AFFORDABLE CITY IN THE COUNTRY JUST BEHIND SANTA MONICA. MY DAUGHTER HAD TO LEAVE CALIFORNIA TO AFFORD A HOME SHE NEEDED ELSEWHERE. MY SON, WHO IS ON DISABILITY, CAN'T AFFORD TO RENT IN BERKELEY. BUT I'M SUPPOSED TO WELCOME HOUSING THE HOMELESS WHO COME HERE FROM OUTSIDE BERKELEY, REFUSE SHELTER TO LIVE IN OUR PARKS. I WAS A LEGAL AID LAWYER -- [BEEPING]

>> Mayor A. Ishii: THANK YOU. THANKS FOR YOUR TIME.

>> Public Speaker: HOWDY. MY NAME IS NICHOLAS ALEXANDER. I WANT TO TALK TO YOU ABOUT AN INCIDENT WITH JEREMY RAN YESTERDAY WHEN HE CAME TO THE DOG PARK, CALLED ME A ******, TRIED TO ATTACK ME AND BROUGHT HIS DOG -- INTO THE LARGE DOG PARK. HE PROCEEDED TO SMOKE METH IN FRONT OF US, CHALLENGING US, I BELIEVE ERIC LARSON ACTUALLY CALLED THE POLICE FOR THAT INCIDENT AND PROCEEDED TO FOLLOW US FOR ABOUT 20 MINUTES BACK AND FORTH. MY GROUP IN THE

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DOG PARK TRIED TO MOVE TO THE OTHER SIDE. HE'D COME TO HARASS US. AND I GOT TO THE POINT MY FRIEND, ZEKE, WHO IS A VETERAN, SPENT TWO JEREMY HEAVEN BROUGHT JEREMIAH, HIS AGGRESSIVE DOG, ENDED UP ATTACKING MY FRIEND, ZIGGY. I HAD TO GET MY PEPPER SPRAY OUT AND I HAD TO WARN HIM I'M ABOUT TO PEPPER SPRAY YOUR DOG. THIS IS THE DAILY LIFE WE ARE EXPERIENCING IN OHLONE. IT'S ENOUGH.

>> Mayor A. Ishii: THANKS. THANKS FOR YOUR COMMENT.

>> Public Speaker: MY NAME IS ALLISON BOND. IF YOU HAVEN'T SEEN OHLONE PARK LATELY, LET ME PAINT A PICTURE. METH PIPES, DISCARDED NEEDLES AT THE PLAYGROUND, OPEN DRUG USE. THE PARK IS NOT USABLE, AS I'M SURE ALL OF YOU KNOW, AND AT THE PUBLIC HEALTH AND SAFETY EMERGENCY. WE HAVE BEEN PATIENT FOR EIGHT MONTHS NOW BECAUSE WE KNOW THIS IS A HARD PROBLEM TO SOLVE, BUT AT THIS POINT WE HAD A PETITION OF 409 SIGNATURES OF NEIGHBORS SAYING THIS SITUATION IS NOT ACCEPTABLE AND IT'S OUT OF CONTROL. WE HAVE BEEN CALLING, WE HAVE BEEN EMAILING, WE HAVE BEEN ATTENDING NEIGHBORHOOD MEETINGS. ENOUGH IS ENOUGH. WE WILL NOT KEEP TRYING TO CONVINCE YOU ANYMORE. WE WILL JUST LITIGATE. THERE'S NO END IN SIGHT. THANK YOU.

>> Public Speaker: I'M SUSAN SILBER. I'M GOING TO SEED MY SPOT TO --

>> Mayor A. Ishii: IF YOU ARE SPEAKING ON THE CONSENT CALENDAR

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YOU SPEAK DURING THE CONSENT CALENDAR.

>> THEY TOLD HER TO COME.

>> Mayor A. Ishii: CLERK?

>> City Clerk: WHAT ITEM IS IT? OKAY, THAT'S ON THE CONSENT CALENDAR. THAT PUBLIC COMMENT IS LATER.

>> Mayor A. Ishii: I KNOW --

>> City Clerk: IT WILL COME UP ON THE CONSENT CALENDAR.

>> Mayor A. Ishii: YEAH. CONSENT CALENDAR IS AFTER. THANK YOU. IS ANYONE ELSE SPEAKING FOR PUBLIC COMMENT?

>> City Clerk: I WILL PICK ONE MORE. ERICA SHORE.

>> Public Speaker: I'M ERICA SHORE, SOCIAL WORKER ATTORNEY. ANYONE HAS THE RIGHT TO A SAFE, SANITARY, PLACE TO LIVE. EQUALLY, EVERYONE IN BERKELEY HAS THE RIGHT TO FULL USE OF CITY PARKS. THE -- PART HAS BECOME A HUMANITARIAN CRISIS. THE CITY HAS FULL LEGAL AUTHORITY TO CLEAR THE ILLEGAL CAMPING IN THE PARK, YET THE CITY HAS DECLINED TO EXERCISE THAT AUTHORITY. I CALL ON THE CITY TO IMMEDIATELY ESTABLISH A SANCTIONED CAMPING AREA AND RELOCATE THE PEOPLE LIVING IN TENTS IN OHLONE PARK THERE WERE SANITATION, SAFE MONITORING, AND OTHER SERVICES CAN BE PROVIDED. PLEASE DON'T TELL US WHAT YOU CANNOT DO. YOU CAN FIND A SANCTIONED PLACE FOR TENSE. YOU CAN ARRANGE FOR OVERSIGHT OF THAT PLACE AND YOU CAN SHOW COMPASSION FOR ALL THE PEOPLE INVOLVED HERE, HOUSED AND UNHOUSED. [BEEPING] PLEASE SHOW

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LEADERSHIP AND TAKE THESE ACTIONS. THANK YOU.

>> Mayor A. Ishii: DO WE HAVE FOLKS ONLINE?

>> City Clerk: YES. SO NOW IS THE TIME FOR PUBLIC COMMENTS FROM PEOPLE PARTICIPATING REMOTELY. THESE ARE FOR ITEMS NOT ON THE AGENDA. NOW IS THE TIME TO RAISE YOUR HAND ON ZOOM IF YOU WANT TO TALK ON AN ITEM THAT IS NOT ON THE AGENDA. FIRST SPEAKER IS MADELEINE ROBERTS RICH.

>> Public Speaker: HI, EVERYONE. MY NAME IS MADELEINE ROBERTS RICH. I'M CALLING AGAIN ABOUT THE SAVE UNITED ARTISTS THEATER INITIATIVE. SO TO THE PUBLIC, ON APRIL 22, THE BERKELEY CITY COUNCIL APPROVED A ZONING PERMIT FOR THE DEMOLITION OF THE UNITED ARTS THEATER ON SHATTUCK AVENUE. THIS WAS AN ILLEGAL DETERMINATION. AS CATEGORICAL EXEMPTIONS ARE NOT ALLOWED FOR BUILDINGS ON THE CALIFORNIA REGISTERED OF HISTORIC SOURCES. THE CITY COUNCIL WAS INFORMED OF THIS. THEY WORKED WITH THE CITY ATTORNEY TO WORK AROUND PUBLIC SCRUTINY AND GET THIS APPROVED. ALTHOUGH IT VIOLATES STATE LAW, WHICH THEY KNEW FULL WELL. I WILL ENTREAT THE PUBLIC TO LOOK AT APRIL 22 COMMENTS FROM PARTICULARLY COUNCILMEMBER BARTLETT AS THEY WERE EXTREMELY DISRESPECTFUL TOWARDS THE MEETING THEN. AND I FIND IT REAL RICH YOU WERE THINKING ABOUT CONTINUING THE TOURISM BUSINESS IMPROVEMENT DISTRICT WHEN YOU'RE GETTING RID AND NOT DEFENDING THE ASSETS IN DOWNTOWN BERKELEY LIKE CIVIC CENTER PARK, WHICH

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REMAINS CLOSED, AND DEMOLISHING THE THEATER --

>> Mayor A. Ishii: YOUR COMMENT TIME IS UP.

>> City Clerk: NEXT UP IS ANGELA.

>> Public Speaker: YES. I WAS ACTUALLY -- I'M SORRY I'M CRYING. I'M BOB SHEPPARD'S PARTNER AND I WASN'T ABLE TO ATTEND THE MEETING IN PERSON, BUT THEY SAID I COULD DO IT ON ZOOM. I'M NOT SURE IF IT'S APPROPRIATE FOR ME TO SAY ANYTHING AT ALL BECAUSE YOU KNOW, YOU SAID IF PEOPLE WANT TO COMMENT ON THINGS THAT ARE NOT ON THE AGENDA --

>> Mayor A. Ishii: YOU CAN GO AHEAD AND COMMENT. WE DIDN'T KNOW THAT YOU WERE HERE EARLIER. PLEASE FEEL FREE TO GIVE YOUR COMMENTS. YOU CAN GIVE HER SOME MORE TIME.

>> THANK YOU. IT WILL BE BRIEF. I'M SORRY I'M CRYING, BUT I CAN'T HELP IT. I WANTED TO THANK YOU, IGOR, FOR THE LOVELY TRIBUTE HE MADE TO BOB. IT WOULD REALLY MEAN A LOT TO BOB. AND SO I THANK YOU FOR THAT. AND THANK YOU SO MUCH FOR ACKNOWLEDGING HIM AND HIS LIFE. HE LOVED THIS COMMUNITY AND HE, YOU KNOW, HE WAS ACTIVELY INVOLVED IN TRYING TO MAKE THINGS BETTER. SO I JUST WANT TO THANK YOU, AND THAT'S ALL I HAVE TO SAY.

>> Mayor A. Ishii: THANK YOU. THANK YOU SO MUCH FOR BEING HERE AND I'M SO SORRY FOR YOUR LOSS.

>> City Clerk: NEXT IS SOMEBODY PARTICIPATING ON THEIR PHONE WITH THE PHONE NUMBER ENDS IN 000.

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>> Public Speaker: HI, GOOD EVENING. -- TWO GREAT PROFESSORS IN CIVICS DEPARTMENT. -- [INDISCERNIBLE] ALSO THE MOTHER OF PHYSICS WAS MURDERED IN THE CITY OF BERKELEY IN 1952. BY -- HE WAS GENIUS PERSON IN PHYSICS AND SHE TAUGHT PHYSICS POWER FOR PEACE. THANK YOU AND GOOD TO TALK TO YOU. HAVE A GOOD NIGHT.

>> Mayor A. Ishii: THANK YOU.

>> City Clerk: NEXT IS FORMER COUNCILMEMBER CHERYL DAVILA.

>> Public Speaker: GOOD EVENING. I'M HAPPY THAT YOU DID -- I'M GLAD THE MARIONETTE IS LEAVING THE ROOM. GOOD. HAPPY THAT YOU DID TRIBUTE TO CHRISTINA MURPHY THIS EVENING AND IT'S UNFORTUNATE THAT THE FRIENDS OF ADELINE COMMUNITY IS NOT ABLE TO ATTEND BECAUSE IT'S AT ANOTHER EVENT AND THE LAST TIME YOU ADJOURNED THEY WERE NOTIFIED EITHER. THAT'S REALLY UNFORTUNATE. BUT OVER 50,000 CHILDREN HAVE BEEN MARTYRED, MURDERED BY IT'S NOT REAL, A.K.A. ISRAEL. YOU STILL HAVE TIME TO DO SOMETHING. SMIRKS AREN'T REALLY APPROPRIATE. I DON'T KNOW ABOUT SHASHANNA'S SMART ON HER FACE. THIS IS SERIOUS AND NEEDS TO BE ADDRESSED. YOU INTERRUPTED MY TIME, SO CAN I HAVE MY COUPLE OF SECONDS LEFT. [BEEPING]

>> Public Speaker: IT'S REALLY HORRIBLE WHAT'S HAPPENING IN PALESTINE RIGHT NOW. CHILDREN ARE DYING. OVER 50,000 HAVE BEEN KILLED. THEY ARE STARVING. NO MEDICAL ATTENTION. FREE PALESTINE.

>> City Clerk: I WILL DRAW ONE MORE CARD SINCE THAT WAS ONLY

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NINE SPEAKERS. NADIA DEMETRIA? IS THAT -- NADIA? YEAH.

>> Public Speaker: I LIVE ON THE CORNER OF McGEE AND HEARST DIRECTLY ACROSS THE STREET FROM THE CHILDREN'S PLAYGROUND, WHICH IS AT HOMELESS TENTS SINCE THE BEGINNING OF THIS YEAR. THE PARK' IS CONTINUOUS DEGRADATION SINCE THE ORIGINAL PROTESTANT CAMP BEGAN IN 2024 HAS BEEN DEEPLY UPSETTING TO MY PARTNER AND MYSELF. I HAVE BEEN FOLLOWED AND STALKED BY A CAMPER WHO HAD HIS -- ACROSS OUR BEDROOM WINDOW FOR MONTHS AND THAT CAMPER THREATENED MY PARTNER AFTER HE CALLED THE POLICE ON HIM. WE HAVE OTHER CAMPA MEMBERS BE ENDANGERED AS WELL BY THIS INDIVIDUAL AS WELL AS MANY OTHERS. WE ARE TOLD TO REPORT ISSUES, BUT WE DO NOT FEEL SAFE DOING SO. THE CITY ON ACTION UNNECESSARILY PUTS PARK USERS AGAINST AND CAMPERS, WHO MOST OF US FEEL COMPASSION FOR. ALLOWING THE ENCAMPMENT TO CONTINUE ALLOWS UNSAFE AND UNHYGIENIC CONDITIONS TO EVERYONE AND IT EXPOSES THE ENTIRE COMMUNITY TO INCREASE THREATS AND HOSTILITY. THE ENCHANTMENT HAS TURNED A PUBLIC SPACE AND PUBLIC GOOD TO A PUBLIC NUISANCE AND ONGOING DISRUPTION.

>> Mayor A. Ishii: THANK YOU. THAT WAS OUR 10TH COMMENT. I DO WANT TO SAY I RECOGNIZE WHAT'S HAPPENING NOW AT OHLONE PARK HAS BEEN REALLY CHALLENGING AND I'M VERY SORRY FOR YOUR EXPERIENCE. WE ARE MOVING ON TO PUBLIC COMMENT BY EMPLOYEE UNIONS SINCE THIS IS THE FIRST REGULAR MEETING OF THE MONTH. ARE THERE ANY UNIONS

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HERE IN PERSON OR ONLINE? OH --

>> [INAUDIBLE]

>> Mayor A. Ishii: THANK YOU. SORRY, MY DISTANCE VISION ISN'T GREAT. YEAH. WE'RE GETTING OLD. [LAUGHTER] IS THERE ANYONE ONLINE?

>> City Clerk: NO.

>> Mayor A. Ishii: OKAY. IT'S JUST ME AGING OVER HERE. ALL RIGHT. SO WE RECEIVED -- WE'RE MOVING ON TO THE CONSENT CALENDAR. FOR FOLKS, JUST GIVE US A MINUTE BECAUSE THERE'S A COUPLE OF THINGS WE ARE GOING TO DO AND THEN YOU CAN SPEAK. I'M REALLY SORRY ABOUT THAT. I KNOW IT'S CONFUSING. WE RECEIVED AN EMERGENCY ORDER BY VICE MAYOR KESARWANI'S OFFICE TO EXCUSE HER ABSENCE FROM TODAY'S MEETING. I WILL HAVE A MOTION TO ADD IT TO TODAY'S AGENDA UNDER CONSENT. MOTION FROM COUNCILMEMBER BARTLETT AND SECOND FROM COUNCILMEMBER HUMBERT. IF YOU TAKE THE ROLE, PLEASE, CLERK.

>> City Clerk: OKAY. TO ADD THE URGENT ITEM TO THE AGENDA, COUNCILMEMBER KESARWANI IS OMINOUSLY ABSENT. COUNCILMEMBER TAPLIN. IS ALSO ABSENT. BARTLETT?

>> B. Bartlett: YES.

>> City Clerk: TREGUB.

>> I. Tregub: AYE.

>> City Clerk: O'KEEFE.

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>> S. O'Keefe: YES.

>> City Clerk: BLACKABY.

>> B. Blackaby: YES.

>> City Clerk: LUNAPARRA.

>> C. Lunaparra: YES.

>> City Clerk: HUMBERT.

>> M. Humbert: YES.

>> City Clerk: AND MAYOR ISHII.

>> Mayor A. Ishii: YES.

>> City Clerk: THE ITEM IS ADDED TO THE CONSENT CALENDAR.

>> Mayor A. Ishii: THANK YOU VERY MUCH. SO, COUNCILMEMBERS, COMMENTS? OKAY, CANCEL MEMBER HUMBERT.

>> M. Humbert: THANK YOU, MADAME MAYOR. LET ME LOOK THROUGH MY NOTES HERE QUICKLY. I JUST HAVE A FEW COMMENTS. WITH RESPECT TO NUMBER 19, WHICH IS THE BERKELEY HUMANE ANNUAL, 11TH ANNUAL PINTS FOR PAWS FUNDRAISER, I WOULD LIKE TO, IF IT'S NOT ALREADY IN THIS ITEM TO DONATE $500 FROM THE DISTRICT DAYTON OFFICE DISCRETIONARY ACCOUNT FOR THIS WONDERFUL FUNDRAISER FOR THIS WONDERFUL ORGANIZATION. NUMBER 21 -- NO, NO, I DON'T HAVE A COMMENT ON THAT. OH, AND FINALLY, NUMBER 25, THE BERKELEY BABY BOOK PROJECT, A REALLY WORTHY PROJECT. IT'S AN IMPORTANT AND LONG-STANDING EFFORT. I'M THRILLED TO SEE THAT COUNCILMEMBER BLACKABY HAS CONTINUED TO THIS. IT HAS BEEN SPONSORED IN PRIOR

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YEARS BY HIS PREDECESSOR, COUNCILMEMBER WENGRAF. I'D LIKE TO GIVE A SHOUT OUT TO MY WONDERFUL CONSTITUENT, HELEN MARCUS, WHO HAS BEEN INVOLVED IN THIS FOR MANY YEARS AND CONTACTED BOTH COUNCILMEMBER BLACKABY AND ME ABOUT IT. THAT'S ALL I HAVE.

>> Mayor A. Ishii: THANK YOU. I'M NOT SURE WHO WAS FIRST. COUNCILMEMBER BLACKABY, PERHAPS?

>> B. Blackaby: I'LL BE FAST. LET ME GO THROUGH MY ITEMS VERY QUICKLY AS WELL. THANK YOU TO COUNCILMEMBER TAPLIN FOR OFFERING -- AUTHORING THE BERKELEY HUMANE ITEM. THE DISTRICT WOULD LIKE TO RELINQUISH $250 FOR ITEM 19. SIMILARLY, COUNCILMEMBER TREGUB, THE DOWNTOWN BERKELEY EVENT, THE DISTRICT 6 OFFICE WOULD LIKE TO RELINQUISH $250 TOWARDS THAT. APPRECIATE MY COLLEAGUES SUPPORTING THE BERKELEY BABY BOOK PROJECT. IT'S A REALLY TERRIFIC PROJECT AND I'M HONORED TO TAKE THE BATON FROM COUNCILMEMBER WENGRAF ON THAT. QUESTION FOR COUNCILMEMBER TREGUB ON ITEM NUMBER 23, DO YOU STILL HAVE A COSPONSOR SPOT AVAILABLE OR ARE YOU ALL BOOKED UP ON THE SUPERFUND ITEM?

>> I. Tregub: WE WOULD BE DELIGHTED TO ADD YOU, COUNCILMEMBER

>> B. Blackaby: GRADE, I WOULD LIKE TO BE ADDED ESPECIALLY AS WE ARE DEALING WITH ALL SORTS OF WILDFIRE RESILIENCY AND EFFECTS CREATING A FUND FUNDED BY MANY OF THE BIG COMPANIES THAT HELPED CREATE THE MESS WE ARE IN WOULD REALLY HELP IN TERMS OF WHERE WE ARE. THE LAST THING I'D LIKE TO COMMENT IS ITEM 2. ALWAYS

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APPRECIATIVE TO SEE ANOTHER PERSON STEPPING FORWARD TO SERVE ON THE POLICE ACCOUNTABILITY BOARD. I WOULD LIKE TO MAKE ONE NOTE ON PAGE 47 OF THE PACKET. IT IS JUST I THINK A GRAMMATICAL THING OF HEATHER OVER THE RESOLUTION SHOULD BE CHANGED TO THE NAME OF THE CURRENT APPLICANT. IT SHOULD BE JOSEPH -- AT THE TOP IF THE CLERK CAN SEE THAT. IT'S A MINOR EDIT I THINK TO THIS ITEM THAT I WOULD SUGGEST THAT WE JUST NEED TO AMEND THAT RESOLUTION, THE TITLE OF THAT RESOLUTION.

>> City Clerk: YES, THANK YOU.

>> B. Blackaby: AND THAT'S ALL I'VE GOT. THANK YOU, MADAME MAYOR.

>> Mayor A. Ishii: THANK YOU. I'M GOING TO LET COUNCILMEMBER TREGUB GO NEXT JUST BECAUSE IT'S EASIER TO GO THE TWO ONLINE. I'M JUST GOING TO REMIND DENISE IF WE CAN DO THE TIMER. THANK YOU.

>> I. Tregub: THANK YOU SO MUCH, MADAME MAYOR. I, TOO, I WOULD LIKE TO THANK COUNCILMEMBER TAPLIN FOR ITEM 19, THE 11TH ANNUAL PINTS FOR PAWS FUNDRAISER, AND I WOULD LIKE TO CONTRIBUTE $150 OUT OF MY D 14 ACCOUNT. FOR ITEM 20, WHICH IS RELINQUISHMENT OF OFFICE FUNDS FOR THE TASTE OF DOWNTOWN BERKELEY 2025 EVENT. I WOULD LIKE TO THANK MY COSPONSORS, COUNCILMEMBER O'KEEFE, COUNCILMEMBER TAPLIN, AND MAYOR ISHII, AND INVITE OTHER COLLEAGUES IF THEY MIGHT CONSIDER CONTRIBUTING. WE DO HAVE AN

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ORGANIZER FROM THE BERKELEY ROTARY. THIS EVENT HAPPENS IN PARTNERSHIP WITH ROTARY EVERY YEAR TO TALK ABOUT THE IMPORTANT WORK THAT THIS FUNDRAISER BENEFITS, BUT IT'S ALSO SUCH AN IMPORTANT FUNDRAISER TO CONTINUE THE VITALITY OF SMALL BUSINESSES IN DOWNTOWN BERKELEY AS WELL. I WOULD LIKE TO THANK THE COUNCIL FOR CONSIDERING OPPOSITION TO ASSEMBLY BILL 942, WHICH WILL UNDO A CONTRACT THAT THE STATE MADE WITH HOMEOWNERS TO HAVE 20 YEARS OF A CERTAIN INCENTIVE-BASED STRUCTURE IF THEY HAVE ROOFTOP SOLAR. AB 942 IF IT IS SIGNED INTO LAW AS WRITTEN WILL NOT ONLY HURT HOMEOWNERS, IT WILL ALSO HURT RENTERS AND IT WILL HURT NONPROFIT ORGANIZATIONS BECAUSE PRO FORMA'S ARE ALREADY TIGHT, ESPECIALLY IN THESE CHALLENGING ECONOMIC TIMES, AND THEY ARE BASED ON A 20 YEAR PERFORMA AND THIS BILL IS GOING TO UNDO THAT. IT WILL MAKE HOUSING MORE EXPENSIVE IF IT MOVES FORWARD AND WE MUST OPPOSE IT. I AM VERY PROUD OF BERKELEY BEING POISED TO JOIN HUNDREDS OF ORGANIZATIONS THAT DON'T ALWAYS AGREE ON MUCH BUT AGREE ON THIS THAT AB 942 IS A BAD BILL AND I ENCOURAGE MEMBERS OF THE PUBLIC TO REACH OUT TO OUR ASSEMBLY MEMBER AND STATE SENATOR AND MAKE OUR OPPOSITION KNOWN. SIMILARLY ON ITEM 23, I WOULD LIKE TO THANK COUNCILMEMBER LUNAPARRA FOR COSPONSORING THIS LEGISLATIVE PACKAGE. AND I THINK WE HAVE SOME MEMBERS OF THE PUBLIC HERE TO SPEAK IN SUPPORT OF IT AS WELL. I'M GOING TO NOT STEAL THEIR THUNDER. I'M GOING TO

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GO BACK TO ITEM 22. WE DID SUBMIT A REVISED AGENDA ITEM UNDER SUPPLEMENTAL 2. THIS WILL NOW BE A LETTER THAT WILL BE GOING OUT NOT JUST TO THE US POSTAL SERVICE POSTMASTER GENERAL, BUT ALSO TO THE TWO U.S. SENATE OFFICES IN CALIFORNIA AND OUR WONDERFUL CONGRESSWOMAN, LATIFA SIMON. THE OTHER ITEM CHANGES TAKES INTO ACCOUNT, SINCE WE SUBMITTED IT WE HAVE BEEN REACH OUT TO BY MANY MEMBERS OF THE COMMUNITY WHO SAID THAT SIMILAR REDUCTIONS IN SERVICE ARE HAPPENING NOT JUST IN THE DOWNTOWN MAIN BRANCH, BUT IN ALL BRANCHES OF THE US POSTAL SERVICE. THESE ARE UNACCEPTABLE CUTS AND WE MUST STAND UP AND DEMAND THAT THOSE SERVICES GET RESTORED AND THE U.S. POSTAL SERVICE IS MORE TRANSPARENT OR ACTUALLY TRANSPARENT PERIOD WITH THE BERKELEY COMMUNITY WHEN THEY ARE CONTEMPLATING REDUCTION OF SERVICES. LASTLY, I WANT TO THANK --

>> Mayor A. Ishii: COUNCILMEMBER, I'M SORRY. YOU'VE COME UP ON YOUR TIME BUT THANK YOU FOR YOUR COMMENTS.

>> I. Tregub: THANK YOU. I WOULD LIKE TO CONTRIBUTE $250 ON ITEM --

>> Mayor A. Ishii: THAT'S GOOD. THANK YOU.

>> I. Tregub: I AM COMPLETE. THANK YOU SO MUCH.

>> Mayor A. Ishii: COUNCILMEMBER BARTLETT.

>> B. Bartlett: THANK YOU, MADAME MAYOR. BRIEFLY, I WOULD LIKE TO CONTRIBUTE FOR MY OFFICE HERE $200 FOR THE PINTS FOR PAWS

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FUNDRAISER. A LOT OF FUN. IT'S OUR OWN LOCAL ANIMAL LALAPALOOZA. ALSO LIKE TO CONTRIBUTE $200 TO THE TASTE OF DOWNTOWN BERKELEY CELEBRATION, ANOTHER VERY FUN EVENT. DOWNTOWN, OF COURSE, IS MY OFFICE DISTRICT, SO MY WORK DISTRICT. HE NEEDS TO SHOW UP, HAVE FUN, AND GET OUT OF THE HOUSE. SHOW UP AT THESE PLACES, HAVE FUN. ENGAGE IN THE COMMUNITY, HAVE FUN. GET OUT OVER THE HOUSE. THERE'S AN EPIDEMIC OF LONELINESS IN THIS COUNTRY AND IT ALLOWS BAD THINGS TO HAPPEN, SO GET OUT OF THE HOUSE AND CONNECT WITH PEOPLE. THANK YOU FOR YOUR WORK ON THAT. I KNOW IT'S FULL, BUT THANK YOU FOR YOUR EFFORTS ON ITEM 23, COUNCILMEMBER TREGUB AND COUNCILMEMBER LUNAPARRA. 25 --

>> I. Tregub: IT IS NOT FULL IF YOU WOULD LIKE TO ADD YOUR NAME.

>> B. Bartlett: SURE. CERTAINLY. I THOUGHT IT WAS FULL. THANK YOU. 2025, THE BERKELEY BABY BOOK PROJECT. THAT'S A MOUTHFUL. THE BERKELEY BABY BOOK PROJECT WOULD ALSO LIKE TO GIVE $200. IT'S A WONDERFUL PROGRAM. THE CHILDREN WANT TO READ QUICKLY AND AT A YOUNG AGE. THANK YOU, COUNCILMEMBER BLACKABY AND MAYOR ISHII, FOR BRINGING THIS FORWARD.

>> Mayor A. Ishii: THANK YOU. BOTH OF YOUR OFFICES ARE DOWNTOWN, ACTUALLY. THANK YOU. COUNCILMEMBER O'KEEFE.

>> S. O'Keefe: I'LL DO THE MONEY ONES FIRST. I'D LIKE TO GIVE $250 TO THE BERKELEY HUMANE PINTS FOR PAWS, ITEM 19, AND ANOTHER $250 TO THE BABY BOOK PROJECT. BOTH SEEM LIKE GOOD THINGS TO

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CONTRIBUTE TO. I'M KIND OF LATE, SO ITEM 21, COUNCILMEMBER TREGUB, WAS THERE ANOTHER ROOM FOR COSPONSORING OR DID SOMEBODY ELSE GRAB IT?

>> I. Tregub: I BELIEVE --

>> S. O'Keefe: I THOUGHT BEN WAS DOING IT.

>> I. Tregub: I THINK THERE'S A SPOT FOR YOU IF YOU WOULD LIKE TO COSPONSOR.

>> S. O'Keefe: I DID RESEARCH IT AND DANG; AB 942 IS A REALLY BAD LAW. I ENTHUSIASTICALLY COSPONSOR IT AND THANK YOU FOR ALLOWING ME TO. YEAH, I SHOULD'VE JUST SAID YES. I JUST WANTED TO SAY THANK YOU FOR ALLOWING ME TO COSPONSOR. THANK YOU, COUNCILMEMBER TREGUB, FOR ALLOWING ME TO COSPONSOR THE TASTE OF -- NOT TASTE OF --

>> Mayor A. Ishii: THANK YOU. COUNCILMEMBER LUNAPARRA?

>> C. Lunaparra: THANK YOU. I'D LIKE TO GIVE -- AND THANK BLACKABY FOR THOSE ITEMS.

>> Mayor A. Ishii: I GUESS I'M LATE, SO I WILL SAY THANK YOU. I'M GOING TO OPEN IT UP TO COMMENT ON CONSENT.

>> I. Tregub: MADAME MAYOR, I THINK WE HAVE A SPOT FOR YOU ON 23.

>> Mayor A. Ishii: OH, GREAT. I THOUGHT COUNCILMEMBER BARTLETT ADDED. NO?

>> I. Tregub: WE STILL HAVE MORE SPOTS.

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>> Mayor A. Ishii: NO, I'M HAPPY TO --

>> COUNCILMEMBERS BLACKABY AND BARTLETT WERE ADDED TO 23.

>> I. Tregub: OH, OKAY. I'M SO SORRY.

>> Mayor A. Ishii: YEAH. NO WORRIES. THANK YOU. IT'S OKAY. IT'S OKAY. LET'S MOVE ON. SO WE WILL TAKE PUBLIC COMMENT ON CONSENT CALENDAR INFORMATION ITEMS ONLY. ALL YOU FOLKS THAT WANTED TO SPEAK BEFORE, PLEASE COME UP. THANKS FOR YOUR PATIENCE. PLEASE JUST COME UP. GO AHEAD. OH. NO WORRIES. GO AHEAD.

>> Public Speaker: I DON'T UNDERSTAND HOW THIS WORKS ALL THE TIME. I RUN THE BERKELEY BABY BOOK PROJECT, OR THE BBB. I'M HERE TO THANK YOU AND IN CASE YOU DON'T KNOW WHAT WE DO, HERE'S WHAT WE DO. WE PUT THE BEST TOOLS IN THE BEST PLACE AT THE BEST TIME TO BRING BRUITS OF LITERACY, AND RIGHT NOW WE HAVE OVER 2000 BOOKS GOING OUT EVERY MONTH TO CHILDREN IN BERKELEY AND EMERYVILLE, THAT'S ONE PROGRAM. ENRICHMENT IN SAN PABLO, OUR OTHER PROGRAM. WE HAVE MAILED 90,000 BOOKS TO LOCAL CHILDREN SINCE 2015. AND I'M REALLY GRATEFUL FOR YOUR SUPPORT. THAT'S HELPING ME AND THE BOOK PROJECT CONTINUE WHAT WE WANT TO DO, WHICH IS MAKING BOOKS A BIRTH RIGHT IN BERKELEY AND BEYOND. IT'S IMPORTANT TO ME BECAUSE THAT'S HOW BERKELEY RAISED ME. I WAS BORN AND RAISED HERE; THE BERKELEY BABY BOOK PROJECT WAS BORN ON A BERKELEY UNIFIED SCHOOL BUS. TOO MANY B'S IN IT ALL THE WAY THROUGH.

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>> Mayor A. Ishii: THANK YOU. THANKS FOR YOUR WORK. [APPLAUSE]

>> Public Speaker: AND SHE WAS A BUS DRIVER. SO TINA FROM BERKELEY ROTARY. I'M HERE TO THANK YOU FOR YOUR SUPPORT FOR THE TASTE OF DOWNTOWN BERKELEY. THIS IS A CHANCE FOR US TO SHOWCASE DOWNTOWN BERKELEY AND SHOW THAT IT'S A VIBRANT PLACE WITH 13 RESTAURANTS ARE ALL GOING TO BE SERVING FOOD AS PEOPLE WONDER BY. IT'S GOING TO BE A WHOLE PARTY. I HOPE YOU'RE THERE. BUT REALLY, WHAT ARE THE PROCEEDS AND WHY ARE WE ASKING FOR FUNDING? THESE GO TO OUR 14 SCHOLARSHIPS THAT WE GIVE TO LOW INCOME BERKELEY HIGH STUDENTS. IT'S A FOUR-YEAR SCHOLARSHIP FOR EACH ONE OF THESE 14 AND WE MENTOR THEM AND HELP THEM MAKE IT THROUGH COLLEGE. A LOT OF THEM ARE FIRST TO COLLEGE AND THEIR FAMILY. WE ALSO SUPPORT HYGIENE KITS THAT GO OUT MONTHLY TO LOCATIONS TO THE HOMELESS. HYGIENE KITS WE PROBABLY DO 600 A MONTH. AND WE ALSO SUPPORT RICHMOND ROTARY.

>> Mayor A. Ishii: THANK YOU. THANKS SO MUCH. THINGS FOR YOUR WORK. HERE WE GO. TAKE TWO.

>> Public Speaker: OKAY. GOOD AFTERNOON, COUNCIL. MY NAME IS MAIA WILLIAMS. I'M A STUDENT AT UC BERKELEY AND WE ARE ALL HERE TO EXPRESS OUR VERY ENTHUSIASTIC SUPPORT OF THE -- BILL AND RESOLUTION INTRODUCED BY COUNCILMEMBER TREGUB. THANK YOU, TREGUB. I WILL BE EXPRESSING SUPPORT OVER THE FOLLOWING ORGANIZATIONS IN THE INTEREST OF PROTECTING EVERYONE AND

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EVERYTHING THAT WE LOVE. 1000 GRANDMOTHERS INDIVISIBLE EAST BAY CLIMATE HEALTH NOW, ACTION FUND, THE SUNRISE MOVEMENT, EXTREME WEATHER SURVIVORS, 350 BAY AREA BERKELEY ASUC AND -- ENDORSED THIS BILL THROUGH A RESOLUTION AS WELL. THANK YOU FOR YOUR ENVIRONMENTAL LEADERSHIP AND WE HOPE THAT THIS RESOLUTION REALLY ENCOURAGES SENATOR ARRUGIN TO SUPPORT THIS BILL. THANK YOU SO MUCH. [APPLAUSE]

>> Mayor A. Ishii: THANK YOU AND THANK YOU TO THE BABY THAT MADE IT THROUGH THAT WHOLE TIME. GOOD JOB. COME ON UP.

>> Public Speaker: HEY, EVERYONE. GOOD EVENING, THEY ARE, CITY COUNCIL. I'M SAM GREENBERG FOR WALK BACK BERKELEY SPEAKING ON CONSENT ITEM 34. I WANTED TO THANK COUNCILMEMBER TREGUB, COMES A MEMBER LUNAPARRA COUNCILMEMBER HUMBERT FOR BRINGING THIS FORWARD. ESPECIALLY COUNCILMEMBER TREGUB FOR LEADING AN IMPORTANT PROJECT IN HIS DISTRICT. THERE'S BEEN A LOT OF WORK AND INTEREST IN THE PAST MAKING OXFORD WORK FOR OUR CITY, SO I WANT TO INCLUDE -- APPLAUD TAPLIN FOR INCLUDING -- RANKED HIGHLY ON THE R.O.P. LIST. ALSO, 2021 UC BERKELEY STUDY WERE VOLUNTEERS IDENTIFIED -- THERE'S A LOT OF WORK THAT'S GOING INTO THIS AND NOW IT'S TIME TO GET WORKING AND BUILD A CORRIDOR THAT WORKS FOR EVERYONE. OXFORD SERVES AS A BARRIER FOR PEDESTRIANS BETWEEN DOWNTOWN AND CAMPUS AND DESERVES AS A BARRIER FOR SOUTH BERKELEY AND NORTH BERKELEY ONE THAT DOESN'T HAVE TO EXIST. ONCE AGAIN,

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THANK YOU COUNCILMEMBER TREGUB, FOR LEADING SO STRONGLY ON THIS PROJECT.

>> Mayor A. Ishii: THANK YOU. ALL RIGHT. COMMENTS ONLINE ON CONSENT OR INFORMATION ITEMS ONLY?

>> City Clerk: YES, THERE'S TWO HANDS RAISED AT THIS TIME. PHONE NUMBER ENDING IN 485.

>> Public Speaker: HI. -- BEST POLICE DEPARTMENT IN THE NATION. GREAT. -- HE WAS GREAT MAN. GREAT POLICE CHIEF. FAIR AND GREAT. SAVED MY LIFE -- DURING HIS ADMINISTRATION. FROM THE LAST COMMENT, -- CALLED THE MOTHER OF -- 10 MINUTES, IT'S BEAUTIFUL. MOTHER OF NUCLEAR PHYSICS. THANK YOU AND GOOD TO TALK TO YOU. HAVE A GOOD DAY.

>> Mayor A. Ishii: THANK YOU.

>> City Clerk: NEXT FOR COMMENTS ON CONSENT CALENDAR ITEMS IS MADELEINE ROBERTS RICH.

>> Public Speaker: HI AGAIN. I JUST WANTED TO THANK THE CITY COUNCIL FOR CONSIDERING SUPPORTING THE INFRASTRUCTURE AT THE PERFORMING ARTS CAMP. I AM AN ATTENDEE AND A HUGE FAN OF THE CALIFORNIA BRAZIL CAMP, WHICH IS ONE OF THE LESSER-KNOWN USES OF THAT CAMP. IT'S TOWARDS THE END OF THE SUMMER. IT'S A BEAUTIFUL PLACE. EROSION CONTROL IS DESPERATELY NEEDED THERE SO IN THE SUMMER KIDS CAN USE IT AND SUBSEQUENTLY CBC CAN USE THE CREEK. I'M VERY RIGHTFUL FOR YOU GUYS CONSIDERING THIS. CLEARLY I WANT

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TO SUPPORT THE INFRASTRUCTURE, DELICATE INFRASTRUCTURE THAT MAKES BERKELEY A WORLD-CLASS COMMUNITY AND WE NEED TO PROTECT THOSE RESOURCES, SO THANK YOU VERY MUCH.

>> Mayor A. Ishii: THANK YOU.

>> City Clerk: THAT'S IT.

>> Mayor A. Ishii: OKAY. IS THERE -- OH, COUNCILMEMBER TREGUB?

>> I. Tregub: THANK YOU. FIRST, ON ITEM 20 -- APOLOGIES. ON ITEM 24, I WOULD LIKE TO THANK COUNCILMEMBER LUNAPARRA AND HUMBERT AS WELL AS COUNCILMEMBER TAPLIN AND WITH THAT I WOULD LIKE TO MAKE A MOTION TO APPROVE THE CONSENT CALENDAR WITH INCLUSIVE OF THE EMERGENCY ITEM AND THE SUPPLEMENTAL TWO PROVISIONS INTO THE ITEMS.

>> Mayor A. Ishii: OKAY. THANK YOU. IS THERE A SECOND? A SECOND FROM COUNCILMEMBER HUMBERT. CAN YOU PLEASE TAKE THE ROLE, CLERK?

>> City Clerk: YES. TO APPROVE THE CONSENT CALENDAR, COUNCILMEMBER TAPLIN IS CURRENTLY ABSENT. BARTLETT?

>> T. Taplin: I'M HERE.

>> City Clerk: I WAS LOOKING THAT WAY, SORRY. COUNCILMEMBER TAPLIN.

>> T. Taplin: YES.

>> City Clerk: BARTLETT.

>> HE'S ABSENT.

>> City Clerk: HE'S ABSENT. I'M USED TO YOU SITTING OVER HERE.

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TREGUB.

>> I. Tregub: AYE.

>> City Clerk: O'KEEFE.

>> S. O'Keefe: AYE.

>> City Clerk: BLACKABY.

>> B. Blackaby: YES.

>> City Clerk: LUNAPARRA.

>> C. Lunaparra: YES.

>> City Clerk: HUMBERT.

>> M. Humbert: YES.

>> City Clerk: AND MAYOR ISHII.

>> Mayor A. Ishii: YES. THANK YOU, EVERYONE. [APPLAUSE] MOVING ON TO THE ACTION CALENDAR. OUR FIRST ITEM IS NUMBER 26, THE REESTABLISHMENT OF THE BERKELEY TOURISM DISTRICT. I WOULD LIKE TO START BY OPENING THE PUBLIC HEARING. THERE IS NOT A PRESENTATION FOR THIS, BUT I WILL TAKE COMMENTS FROM -- I'M GOING TO START BY TAKING PUBLIC COMMENTS IF THERE'S PUBLIC COMMENTS ON THIS. ANYONE ONLINE?

>> City Clerk: THERE IS ONE SPEAKER ONLINE. THIS IS FURTHER REESTABLISHING THE BERKELEY TOURISM BID. THE SPEAKER IS MADELEINE ROBERTS RICH.

>> Public Speaker: HELLO AGAIN. I JUST WANTED TO MAKE A COMMENT ABOUT THIS. I MEAN, I THINK FROM WHAT I'VE READ BRIEFLY, THIS IS

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A TAX ON THE HOTELS WHO HAVE ALREADY BEEN HIT HARD OVER THE LAST FIVE YEARS. I THINK BERKELEY HAS A LOT TO OFFER AS A TOURIST DESTINATION, BUT I THINK, LIKE I'VE ITERATED TONIGHT, OUR RESOURCES THAT DRAW PEOPLE HERE ARE VERY DELICATE AND THEY NEED ADVOCATES AND CHAMPIONS AND STEWARDS. YOU CAN'T TAX YOUR WAY OUT OF THIS PROBLEM OR HAVE SOME ORGANIZATION THAT SOLVES THESE PROBLEMS JUST AS AN ORGANIZATION. THERE NEEDS TO BE A HOLISTIC LIST OF THINGS THAT MAKES THIS CITY GREAT LIKE ACCESS TO CINEMA IN THE DOWNTOWN AREA, FOR INSTANCE, OR JUST MINOR IMPROVEMENTS TO THE DOWNTOWN AREA. I KNOW A RESTAURANT OWNER IN THE ADELINE CORRIDOR AND I ALSO KNOW A LOT OF PEOPLE IN THE BERKELEY THEATER COMMUNITY AND THAT COMMUNITY NEEDS A LOT OF SUPPORT AS WELL. I SUPPORT THE EFFORT TO REINVIGORATE THE TOURISM BID, BUT I THINK THERE NEEDS TO BE A LOT MORE EFFORT FROM CITY OFFICIALS TO PROTECT WHAT THE SPIRITS OF THE CITY. THANK YOU.

>> Mayor A. Ishii: THANK YOU. ARE THERE ANY OTHER COMMENTS?

>> City Clerk: THAT'S THE ONLY RAISED HAND ON THIS AND RIGHT NOW.

>> Mayor A. Ishii: OKAY. AND ARE THERE ANY COUNCIL COMMENTS ACTUALLY BEFORE WE CLOSE? IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> City Clerk: THERE'S NO PUBLIC HEARING.

>> Mayor A. Ishii: I'M SO SORRY.

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>> City Clerk: THERE WILL BE A PUBLIC HEARING.

>> Mayor A. Ishii: THERE WILL BE A PUBLIC HEARING LATER. OTHER COMMENTS THEN FROM COUNCIL MEMBERS?

>> M. Humbert: I HAVE A COMMENT.

>> Mayor A. Ishii: THANK YOU.

>> M. Humbert: THANK YOU, MADAM MAYOR. I WANT TO BRIEFLY THANK EVERYONE AT OUR OFFICE OF ECONOMIC DEVELOPMENT FOR THE SUPPORT THEY PROVIDE TO THE TOURISM BID AND ALL OF OUR BIDS. O.E.D. IS A BIG PART OF WHAT KEEPS OUR LOCAL BUSINESSES STRONG, AND I TRULY APPRECIATE EVERYTHING THEY DO TO SUSTAIN THEM. IT HAS BEEN SAID ABOUT O.E.D. MANY TIMES THAT IT PUNCHES ABOVE ITS WEIGHT AND WE ARE PROUD OF EVERYONE THAT WORKS THERE.

>> Mayor A. Ishii: HEAR HEAR. THANK YOU, COUNCILMEMBER. OTHER COMMENTS?

>> City Clerk: OH, MAYOR? JEFFREY CHURCH FROM IS IT BERKELEY HAS RAISED HIS HAND.

>> Mayor A. Ishii: YES. I WOULD LOVE TO HEAR FROM YOU, JEFFREY.

>> City Clerk: OKAY. JEFFREY, GO AHEAD.

>> Public Speaker: VISIT BERKELEY IS DEDICATED TO SHOWCASE HOW AMAZING BERKELEY IS NOT JUST FOR OUR RESIDENTS, BUT VISITORS AS WELL. WE ARE HERE TO SUPPORT EVERY EFFORT THE CITY HAS TO HIGHLIGHT BERKELEY AS A BEACON FOR EVERYONE AT A WELCOMING DESTINATION ESPECIALLY DURING THESE TURBULENT TIMES. THANK YOU

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SO MUCH, MADAM MAYOR, ELECTED OFFICIALS, AND CITY STAFF, FOR ALL THE WORK THAT YOU DO TO CONTINUE MAKING BERKELEY A DESTINATION FOR ALL. AND DEFERRED COUNCILMEMBER HUMBERT, MAKING SURE BERKELEY IS RESILIENT SUPPORTING OUR LOCAL BUSINESSES AND SMALL ASSOCIATIONS AS WELL THAT SUPPORT OUR BUSINESSES. IF THERE'S EVER ANYTHING WE CAN DO TO SUPPORT YOU, PLEASE LET US KNOW AND THANK YOU SO MUCH FOR YOUR TIME.

>> Mayor A. Ishii: THANK YOU, JEFFREY, AND THANK YOU SO MUCH FOR YOUR WORK AT VISIT -- I WANT TO SAY THIS IS ACTUALLY VERY IMPORTANT FOR OUR CITY ESPECIALLY GIVEN OUR CURRENT DEFICIT AND LINGERING IMPACTS FROM THE PANDEMIC. BERKELEY IS IN THE PROCESS OF RESTORING ITS IDENTITY AND VIBRANCY. THIS WILL CONTINUE -- AND WILL ELEVATE OUR ECONOMIC VITALITY. THIS IS A WAY WE CAN ACTUALLY INCREASE REVENUE WITHOUT PUTTING A FURTHER BURDEN ON BERKELEY RESIDENTS. VISIT BERKELEY WILL CONTINUE TO BUILD ON BERKELEY'S SUCCESS AS A VISITOR DESTINATION AND GROW OCCUPANCY TAX AND VISITOR GENERATED SALES TAX. I REALLY WANT TO THANK VISIT BERKELEY, WHICH IS AN AMAZING PARTNER FOR OUR CITY TO IMPROVE THE ECONOMIC VITALITY OF THE BERKELEY HOTEL SECTOR AND MORE. TO THE COMMENTER WHO MADE A COMMENT EARLIER, PLEASE CHECK OUT VISIT BERKELEY AND SEE BECAUSE THEY ARE DOING SO MUCH WORK TO ADVERTISE FOR ALL THE RESTAURANTS AND BUSINESSES IN BERKELEY. EVEN YOUR FRIEND WHO IS INVOLVED IN THEATER. VISIT BERKELEY

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HELPS TO ADVERTISE THOSE THINGS FOR FREE. I JUST WANT TO SAY A BIG THANK YOU AND ALSO JUST HIGHLIGHT THE IMPORTANCE OF SMALL BUSINESSES AND RESTAURANTS IN BERKELEY. VISIT BERKELEY HELPS THEM SO MUCH AND OUR OFFICE OF ECONOMIC DEVELOPMENT HELPS SO MUCH. THESE ARE THE THINGS THAT REALLY MAKE BERKELEY…BERKELEY. THANK YOU SO MUCH. ANY OTHER COMMENTS? I DON'T -- BELIEVE WE NEED TO HAVE --

>> City Clerk: THERE'S NO FORMAL ACTION.

>> Mayor A. Ishii: THERE IS NO FORMAL ACTION. SO MOVING ON TO OUR FORMAL HEARINGS. WE WILL MOVE ON TO ITEM 27, WHICH IS TO CONDUCT PUBLIC HEARING IN COMPLIANCE WITH THE SIMILE BILL 2561 GOVERNMENT CODE 3502.3 REGARDING VACANCIES, RECRUITMENT, AND RETENTION EFFORTS FROM THE CITY MANAGER. AND WE HAVE A PRESENTATION. AND WE WILL START WITH THAT. I BELIEVE WE NEED TO OPEN OUR PUBLIC HEARING, SO I WILL DO THAT AS WELL. WHENEVER YOU'RE READY.

>> THANK YOU, MADAM MAYOR. I WILL SAY THE PRESENTATION IS FROM MONICA WALKER WITH DEPUTY CITY MANAGER -- 12-15 MINUTES FOR THE PRESENTATION.

>> Monica Walker: GOOD EVENING, HONORABLE MAYOR, AND MEMBERS OF THE CITY COUNCIL. I AM MONICA WALKER, INTERIM DIRECTOR OF HUMAN RESOURCES, AND TONIGHT I WILL BE PRESENTED TO YOU THE CITY'S VACANCY RATES AND RECRUIT AND RETENTION EFFORTS OUTLINED UNDER

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ASSEMBLY BILL 2561 AND GOVERNMENT CODE 3502.3. THIS IS A NEW REQUIREMENT EFFECTIVE JANUARY 2025, IN WHICH PUBLIC AGENCIES MUST NOW DO THE FOLLOWING. WE MUST TRACK JOB VACANCIES AND PRESENT ON THE STATUS OF THESE VACANCIES, RECRUITMENT, AND RETENTION EFFORTS AT A PUBLIC HEARING AT LEAST ONCE PER FISCAL YEAR, AND THIS MUST BE DONE PRIOR TO THE GOVERNING BODY ADOPTING THE AGENCY'S BUDGET. AND WE MUST IDENTIFY POLICIES, PROCEDURES, AND RECRUITING ACTIVITIES THAT POSED CHALLENGES TO THESE EFFORTS. I WILL BEGIN WITH ADDRESSING VACANCY RATES IN THE CITY. THE VACANCY RATES IN THE CITY REMAIN STEADILY LOW. I DO WANT TO POINT OUT THAT ALL OF THE DATA PRESENTED IN THIS PRESENTATION ARE FROM JANUARY THROUGH DECEMBER 2024, SO IT'S THE PAST CALENDAR YEAR. AND DURING 2024, THE AVERAGE VACANCY RATE WAS 15.4% WITH A HIGH OF 16.1% AND A LOW OF 14.7%. THE CITY HAS EIGHT BARGAINING UNITS. TWO OF THE BARGAINING UNITS, THE BERKELEY POLICE ASSOCIATION AND THE INTERNATIONAL BROTHERHOOD OF ELECTRICAL WORKERS HAD VACANCY RATES ABOVE 20%, WHICH IS THE THRESHOLD FOR UNDER AB 2561. THIS WAS MAINLY IN THE POLICE OFFICER CLASSIFICATION. IBEW HAD AN END OF YEAR VACANCY RATE OF 10.2% AND ELECTRICIAN, LEAD ELECTRICIAN, AND COMMUNICATIONS SUPERVISOR. AS FOR THE RECRUITMENT INFORMATION, THERE WERE 306 VACANCIES FILLED DURING CALENDAR YEAR 2024. OF THESE, 155 WERE DUE TO EXISTING ELIGIBILITY AND ONGOING RECRUITMENTS. 123 WERE

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DUE TO NEW EXTERNAL OR INTERNAL RECRUITMENTS AND -- THIS IS OUR RECRUITMENT PROCESS ALL THE WAY FROM WHEN A POSITION IS VACANT OR NEWLY CREATED ALL THE WAY THROUGH FILING, EXAMS, AND ALL THE WAY THROUGH ONBOARDING. I WILL BE FOCUSING ON ONE ASPECT IN THE NEXT FEW MINUTES. THIS IS THE ADVERTISING AND OUTREACH PORTION. IN 2022 AND 2023, THE CITY LAUNCHED AN EMPLOYER OF CHOICE INITIATIVE. IN THIS INITIATIVE, THE GOAL WAS TO RECRUIT AND RETAIN A TALENTED POOL OF EMPLOYEES IN MANY DIFFERENT WAYS. FROM THIS INITIATIVE, WE WERE ABLE TO HIRE AN ANALYST SOLELY DEDICATED TO THE EMPLOYER CHOICE INITIATIVE. ANNA HAS ALSO DEDICATED A LOT OF THE NUMBERS THAT WENT INTO THIS PRESENTATION AND A LOT OF OTHER NUMBERS THAT HAVE GONE INTO MEASUREMENTS AS WELL. TOGETHER, SHE ALSO WORKED WITH A VENDOR, WHICH WAS ALSO UNDER THE EMPLOYER CHOICE INITIATIVE, AND THIS VENDOR WAS DEDICATED TO CREATING A CAREER WEBSITE, AND ALSO INCREASING OUR SOCIAL MEDIA PRESENCE. THIS IS OUR CAREER WEBSITE. THIS IS A WEBSITE THAT IS SEPARATE FROM THE CITY OF BERKELEY WEBSITE. CAREERS AND OPPORTUNITIES WITHIN THE CITY. I'M GOING TO GIVE YOU A MINI TOUR OF IT. AS YOU CAN SEE, IT FOCUSES ON SITES THROUGHOUT THE CITY. IT TALKS ABOUT EMPLOYEE TESTIMONIAL, SO ACTUAL EMPLOYEE TESTIMONIALS ABOUT HOW THEY FEEL ABOUT THE JOB IN THEIR OWN CAREER. IT ALSO HIGHLIGHTS SOME HARD TO FILL ROLES WITHIN THE CITY. IT ALSO TALKS ABOUT BENEFITS AND ALL OF THE

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PERKS WORKING HERE AND OUR COMPENSATION. BUT IT ALSO HAS A LOT OF CULTURAL ASPECTS TO IT. SO WHAT MAKES BERKELEY UNIQUE. IT HAS AN INTERACTIVE MAP SO YOU CAN SEE WHAT ELSE IS IN THE CITY BESIDES WORK. THAT REALLY SIZES WHAT THE GOAL IS, WHICH IS TO MAKE SOMEONE'S CAREER AT BERKELEY MORE THAN A WORKPLACE, BUT A WAY OF LIFE. AND IT ALSO HAS A WAY TO CONNECT WITH THE CITY IF THEY ARE INTERESTED IN WORKING. ON THIS SIDE, THERE'S ALSO A LINK TO THE BERKELEY POLICE DEPARTMENT'S CAREER SITE LANDING PAGE. IN A SIMILAR WAY IT HIGHLIGHTS ALL THE BENEFITS OF BEING IN THE BERKELEY POLICE DEPARTMENT. IT ALSO HAS TESTIMONIALS AND VIDEOS THAT CANDIDATES CAN CLICK ON TO SEE WHAT IT'S REALLY LIKE TO WORK HERE. IT HAS A MESSAGE FROM THE CHIEF AND IT HAS A LOT OF THE BENEFITS AS WELL AND A PLACE TO LEAVE THEIR CONTACT INFO AS WELL. OR SOCIAL MEDIA PRESENCE HAS ALSO INCREASED. YOU'LL SEE WE HAVE DIFFERENT SITES ON INSTAGRAM AND FACEBOOK AND LINKED IN. JUST LAST MONTH, WE FEATURED A WOMEN'S HISTORY MONTH ADD WITH DIFFERENT WOMEN LEADERS THROUGHOUT THE CITY SO CANDIDATES COULD CONNECT WITH THAT. WE ALSO LAUNCHED ALGORITHMS. IF A CANDIDATE, SAY, SEARCHED FOR A CERTAIN TYPE OF JOB, EVEN IF IT'S ON A DIFFERENT WEBSITE, THEY MAY SEEK OUR JOBS. FOR EXAMPLE, IF THEY SEARCH FOR STREET JOBS, THEY WOULD SEE ONE OF OUR EMPLOYEES IN THEIR AD FEATURING. WE'VE ALSO DONE DIRECT OUTREACH VERY MUCH LIKE AN EXECUTIVE RECRUITER. WHAT I MENTIONED SO FAR REQUIRES A

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CANDIDATE TO COME AND FIND US. IN THIS CASE, WE CAN REACH OUT TO THEM AND OFTEN TIMES WHEN A CANDIDATE IS NOT GOING FOR A JOB NECESSARILY, IT WILL PEAK THEIR INTEREST AND THEY WILL LIKELY BE A VERY QUALIFIED CANDIDATE. WE DID THIS FOR AN ELECTRICIAN RECENTLY AND IT RESULTED IN AN INCREASE IN APPLICATIONS. WE ALSO -- THIS IS AN EXAMPLE OF AN AD THAT WAS ON YOUTUBE THAT RECEIVED ALMOST 150,000 VIEWS. IT HAD A 5% CLICK THROUGH RATE, WHICH MEANT ABOUT 7000 PEOPLE ACTUALLY CLICKED ON IT AND WENT TO OUR JOBS WEBSITE. I LIKE TO PLAY IT FOR YOU. SORRY, I'M NOT SURE WHY THE SOUND ISN'T WORKING, BUT IMAGINE VERY NICE SOUND BEHIND IT. OH, THERE IT GOES. [VIDEO PLAYING] [MUSIC]

>> Monica Walker: OKAY. ALL OF THOSE EFFORTS I HAVE MENTIONED RESULTED IN AN INCREASED NUMBER OF APPLICATIONS. IN 2024, WE RECEIVED CLOSE TO 24,000 APPLICATIONS, WHICH WAS A 74% INCREASE SINCE BEFORE THE TIME THE EMPLOYER CHOICE INITIATIVE BEGAN. AS YOU CAN IMAGINE, THIS REQUIRES AN INCREASED NUMBER OF EXAMS, SCREENING, AND WE HAVE A DEDICATED ANALYST JUST FOR THE POLICE DEPARTMENT, AND SHE HAS WORKED TIRELESSLY CAN DIDN'T TO CONTINUOUSLY SCREEN AND HOST BIMONTHLY EXAMS. OUR TEAM HAS ALSO WORKED A LOT OF NIGHTS AND WEEKENDS TO TRY TO SUPPORT THIS EFFORT TO TRY TO CLOSE THE VACANCY GAP IN THE POLICE DEPARTMENT. WE ALSO INSTITUTED A PAPERLESS PROCESS. FROM THE TIME THE APPLICANT APPLIES TO WHEN THEY ARE ON BOARDED, THEY DON'T NEED

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TO PRINT ANYTHING, THEY DON'T NEED TO USE A PENCIL, YOU CAN DO EVERYTHING ONLINE, WHICH PROMOTES SUSTAINABILITY. WE ALSO IMPLEMENTED ON-SITE LIVE SCANNING FOR FINGERPRINTS. THIS ALSO REDUCES TIME TO HIRE AND IT ALSO REDUCES THE BURDEN ON CANDIDATES HAVING TO GO OUTSIDE TITHER A UPS STORE OR INTERNAL PARTNERS WITHIN THE POLICE DEPARTMENT. AND NOW I WILL ADDRESS RETENTION. SO WE START CANDIDATES OR NEW EMPLOYEES OFF VERY STRONG WITH ON-SITE NEW EMPLOYEE ORIENTATION. WE TALK ABOUT CITY POLICIES, CITY TRAINING, ALL THE BENEFITS THEY HAVE WORKING WITH BERKELEY. PROMOTIONAL OPPORTUNITIES AS WELL. PARTICULARLY, IN THE BARGAINING UNITS THAT HAVE VACANCIES, WE ALSO OFFER COMPETITIVE PAY AND VERY STRONG BENEFITS. WE HAVE A LOT OF INCENTIVE PAY, BASE SALARIES THAT ARE WITHIN OR ABOVE MARKET RANGE. WE OFFER A HEALTH PLAN AT NO COST WITH KAISER. WE OFFER 15 HOLIDAYS AND THREE FLOATERS, WHICH IS VERY COMPETITIVE WITH THE MARKET. WE ALSO OFFER PARENTAL LEAVE WITH ONE YEAR FULL BENEFITS. VERY SIMILAR BENEFITS OCCUR IN BPA AS WELL AS WELL AS A LOT OF INCENTIVE PAYS AND COMPETITIVE BASED SALARY. THE POLICE DEPARTMENT ALSO HAS A RECRUITMENT AND RETENTION INCENTIVE PROGRAM THAT REWARDS CANDIDATES UPON HIRE AND ALSO UPON COMPLETION OF PROBATION. AND IT ALSO AWARDS EMPLOYEES WHO SUCCESSFULLY REFER CANDIDATES. WE ALSO OFFER TRAINING AND DEVELOP IT BECAUSE WE REALLY VALUE NOT JUST HIRING EMPLOYEES,

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BUT ALSO DEVELOPING THEM IN THEIR CAREERS AND GROWING THEM TO THE NEXT LEVEL AND BEYOND. WE JUST LAUNCHED A SUPERVISING LEARNING PROGRAM, WHICH IS A COHORT THAT MEETS WITH A TRAINING EXPERT IN THIS PROGRAM, BUT ALSO THEY CAN SUPPLEMENT IT WITH ONLINE CLASSES AND IT LASTS AN ENTIRE YEAR. EVERY WEEK IN OUR NEWSLETTER WE FEATURE PROMOTIONAL OPPORTUNITIES IN BERKELEY MATTERS TO ENCOURAGE EMPLOYEES TO TEST OFTEN AND QUALIFY AND GET ON ELIGIBLE LISTS FOR PROMOTIONS, AND THIS GIVES THEM AN INCENTIVE TO GROW AND TAKE THE NEXT STEP IN THEIR CAREER. ALL OF THESE EFFORTS HAVE RESULTED IN THE VACANCIES THAT WE TALKED ABOUT BEFORE, 15% OF THOSE RESULT FROM STAFFING GROWTH AND 38% FROM INTERNAL OPPORTUNITIES. AND ALTHOUGH THERE'S BEEN 18% RESULTING FROM RETIREMENT AND VOLUNTARY SEPARATION AND 29% FROM VOLUNTARY SEPARATION, OVERALL, THE RETENTION RATE -- IN CLOSING, I WOULD JUST LIKE TO THANK OUR HIRING MANAGERS AND ALL DEPARTMENTS FOR WORKING WITH US ON OUR HIRING PROCESS. I WOULD LIKE TO THANK MAYOR AND CITY COUNCIL FOR YOUR SUPPORT OF ALL OF OUR INITIATIVES. MOST OF ALL, AND THOUGH I AM PRESENTING THIS PRESENTATION, I STAND ON THE SHOULDERS OF A VERY STRONG AND VERY DEDICATED HUMAN RESOURCES DEPARTMENT OF WITHOUT THEM I WOULD NOT BE ABLE TO PRESENT TO YOU THE WORK THAT WE DO TODAY. THANK YOU.

>> Mayor A. Ishii: THANK YOU. I FEEL LIKE WE SHOULD CLAP. [APPLAUSE] I'M JUST SO THRILLED TO SEE ALL THE WORK YOU ALL ARE

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DOING. THANK YOU SO MUCH FOR EVERYTHING. YEAH. VERY THRILLED TO SEE ALL OF THAT. I THINK THERE ARE OTHER PEOPLE HERE TO MAKE PRESENTATIONS AS WELL? OKAY. SURE. OKAY. IN THAT CASE, I WOULD LIKE TO TAKE QUESTIONS IF THERE'S ANY QUESTIONS FROM COUNCILMEMBERS. ARE THERE QUESTIONS FROM COUNCILMEMBERS? YES, SORRY. COUNCILMEMBER MAYBE TREGUB WAS FIRST.

>> I. Tregub: BY A HAIR. THANK YOU SO MUCH FOR THE PRESENTATION. I HAVE THREE QUESTIONS. I WANTED TO ASK IF YOU HAVE DONE ANY KIND OF INTERNAL TRACKING HOW THE PIPELINE NUMBERS COMPARE TO PAST YEARS. PARTICULARLY 2023, THAT CALENDAR YEAR. I WAS ONE PLAN FOR EXPECTED ATTRITION DUE TO RETIREMENTS. AND THEN I'M WONDERING, WE ARE GOING INTO A CHALLENGING YEAR AND WHAT IMPACTS IN STAFFING SHOULD WE BE LOOKING AT IN THE COMING TWO YEARS?

>> Monica Walker: THANK YOU, COUNCILMEMBER TREGUB. TO YOUR FIRST QUESTION, SINCE THIS IS THE FIRST YEAR WE HAVE TRACKED IN THIS WAY, I ONLY HAVE DATA FOR 2024. BUT I'D BE HAPPY TO GO BACK AND COMPILE AND COMPARE IT TO 2023. I'D BE HAPPY TO DO THAT FOR YOU. THE SECOND QUESTION TO PLAN RETIREMENTS, IT'S A LITTLE BIT HARD TO PREDICT SOMETIMES, THOUGH WE CAN KIND OF PINPOINT WHEN RETYPE -- EMPLOYEES WILL RETIRE. I KNOW THAT IN PUBLIC SAFETY THEY TRY TO EITHER DO PROVISIONAL ASSIGNMENTS TO COVER ANTICIPATED RETIREMENTS. SAY IF SOMEBODY IS OUT ON WORKERS COMP OR LEAVE. THEY TRY TO COVER THAT. IT'S A LITTLE BIT HARDER IN PUBLIC

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SAFETY BECAUSE OF THE BACKGROUND PROCESS BEING LONGER. WE TRY TO COVER IT FROM A POLICE OFFICER STANDPOINT. WE DO NEED ADDITIONAL TIME FOR PLANNING AND THE POLICE DEPARTMENT DISCOVER THAT. I ANTICIPATE THAT NEXT YEAR'S DATA MAY LOOK A LITTLE DIFFERENT SIMPLY BECAUSE OF THE HIRING FREEZE THAT HAS GONE INTO PLACE. HOWEVER, THERE HAS BEEN VERY INTENTIONAL HIRING. DEPARTMENTS WHO FEEL LIKE THERE IS AN ESSENTIAL NEED TO PROVIDE SERVICES HAVE SUBMITTED EXCEPTION REQUESTS HAVE BEEN SUBMITTED TO BE REVIEWED. WE ARE STILL HIRING IN KEY AREAS THAT REALLY NEED ESSENTIAL SERVICES.

>> I. Tregub: THANK YOU.

>> Mayor A. Ishii: THANK YOU. COUNCILMEMBER BLACKABY.

>> B. Blackaby: THANK YOU, MADAM MAYOR. THANK YOU, MONICA, THE HR TEAM, AND CITY LEADERSHIP FOR EVERYTHING YOU ARE DOING. THE HIRING AND ATTENTION FRONT, IT'S REALLY GREAT TO SEE THE DATA AND THE NUMBERS. I THINK WE HAVE A SENSE THAT THINGS HAVE BEEN KIND OF TURNING AROUND AND IT'S GREAT TO SEE THE NUMBERS BACK THAT UP THAT WE ARE ABLE TO ATTRACT AND RETAIN TALENT, WHICH IS GREAT. YOU HAD THE SLIDE WITH THE BARGAINING UNITS WITH MORE THAN 20% VACANCY RATES. I'M CURIOUS IF THERE'S GOING TO BE MORE DRILLED DOWN AVAILABLE THERE IN THOSE SPOTS WE GOT MORE THAN 20% VACANCY. YOU KNOW, LIKE NUMBER OF APPLICANTS WE ARE GETTING FOR THOSE POSITIONS, AVERAGE NUMBER OF TIME IT'S TAKING TO FILL

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THOSE POSITIONS. TO SEE IT AGAIN A LITTLE BIT MORE MAYBE WHAT'S GOING ON UNDERNEATH. CURIOUS OF THAT LEVEL OF DETAIL FOR THOSE BARGAINING UNITS.

>> Monica Walker: OKAY. WOULD YOU LIKE THAT NOW?

>> B. Blackaby: YOU CAN ALSO FOLLOW UP WITH THAT. WE DON'T NEED IT NOW. MY UNDERSTANDING, AND I KNOW WE ARE TRYING TO FIGURE OUT THE REQUIREMENTS HERE, MIGHT JUST BE REQUIRED FOR US TO TRACK. I DON'T KNOW. WAS JUST CURIOUS FOR US TO SEE IT.

>> Monica Walker: I DO HAVE SOME DATA SURROUNDING THAT. I CAN EITHER SHARE IT NOW OR FOLLOW-UP.

>> B. Blackaby: SURE. SHARE IT NOW. THAT WOULD BE GREAT.

>> Monica Walker: DO YOU HAVE A PARTICULAR BURNING?

>> B. Blackaby: THERE WAS THE -- AND POLICE ASSOCIATION I THINK WERE THE TWO IN PARTICULAR. TERRIFIC.

>> Monica Walker: OKAY. THIS IS FOR -- SORRY, THE RIBBON FOR THE SHARING SCREEN IS BLOCKING.

>> B. Blackaby: NO PROBLEM. [LAUGHTER]

>> Monica Walker: THIS ONE IS FOR IBEW, I BELIEVE.

>> B. Blackaby: GOT IT.

>> Monica Walker: SO THE NUMBER OF VACANCIES FILLED MY EXISTING ELIGIBLE IS ONE. NUMBER OF CALENDAR DAYS TO FILL THIS VACANCY WAS 245 DAYS. AVERAGE NUMBER OF CALENDAR DAYS WAS 95. AND THESE WERE THE SEVEN VACANCIES IN THE DEPARTMENT OR BARGAINING UNIT.

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>> B. Blackaby: 85 APPLICATIONS. GOT IT. AND ON THE POLICE.

>> Monica Walker: THE TOTAL NUMBER OF VACANCIES FILLED WAS 20. THE AVERAGE NUMBER OF DAYS TO FILL VACANCIES WAS 421. A LOT OF THAT IN PUBLIC SAFETY IS DUE TO BACKGROUNDS. A LITTLE MORE EXTENDED IN THAT AREA. THE REASON IT SAYS NEW OR EXTERNAL, A LOT OF THESE ARE THE POLICE OFFICER LEVEL. THE APPLICATIONS RECEIVED, AS YOU CAN SEE, IS VERY HIGH. 1142, WHICH IS THE REASON WE DO SO MANY BIMONTHLY TESTS AND APPLICATION REVIEWS.

>> B. Blackaby: I HAVE NO IDEA THERE WAS SUCH A HUGE RATIO. THAT'S A BIG TOP OF THE FUNNEL TO START WITH, WHICH IS INTERESTING. I ASSUME HOPEFULLY GOING FORWARD IT WILL BE INTERESTING TO TRACK AS THIS RECRUITMENT FIRM IS GETTING INTO THE NEXT YEAR OF THEIR WORK IF WE CAN IMPROVE ON THE NUMBER OF CALENDAR DAYS TO FILL VACANCIES BECAUSE OBVIOUSLY THAT IS SUCH A LONG LEAD TIME. IF WE CAN REDUCE THAT CYCLE, IT WOULD BE BENEFICIAL. OKAY. THAT WAS MY QUESTION. IF THERE'S ANY OTHER COMMENTARY, THAT'S FINE. BUT OTHERWISE, THAT WAS REALLY HELPFUL.

>> Mayor A. Ishii: THANK YOU. OTHER QUESTIONS? ALL RIGHT THEN. I WILL MOVE US ONTO PUBLIC COMMENT ON THIS. THANK YOU.

>> Public Speaker: GOOD EVENING, MADAM MAYOR, EMBERS OF THE COUNCIL. MY NAME IS JUSTIN AND I HAVE THE HONOR OF SERVING AS THE LOCAL ONE AFSME. WE ARE PROUD TO BE HERE TONIGHT TO WITNESS THIS GREAT REPORT THAT MONICA AND HER TEAM PUT TOGETHER FOR US.

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BERKELEY HAS MADE SOME GREAT GAINS IN ADDRESSING THE STAFF SHORTAGES IN THE LAST COUPLE OF YEARS UNDER MONICA'S LEADERSHIP. WE DEFINITELY ARE PLEASED TO BE PART OF THAT PROCESS. FILLING THESE ROLES AND THE TEAM THAT COMES TOGETHER EACH DAY TO SERVE THE PUBLIC IS GOING TO BECOME MORE IMPORTANT AS WE SPEARHEAD THIS BUDGET SHORTFALL TOGETHER TO PROVIDE THE SAME SERVICES. THE HUMAN RESOURCES DEPARTMENT HAS A TRACK RECORD OF WORKING WITH DEPARTMENT COLLABORATIONS TO CORRELATE THE UPTICK IN FILLING VACANCIES THAT YOU'VE SEEN TONIGHT. I'M HONORED TO SEE THAT IN ACTION WORKING WITH A DEPARTMENT THAT HAS A SINGLE AGENCY. OUR DEPARTMENT WOULD URGE THE OTHER DEPARTMENTS DIRECTOR WALKER ARE DOING WITH THEIR TEAMS TO PUT BOOTS ON THE GROUND AND PROVIDE SERVICES TO OUR TEAM AND CONSTITUENTS AS SOON AS POSSIBLE AND MAKE THAT A PRIORITY FOR WHAT WE CAN ACCOMPLISH WITHIN THE BUDGET MEANS THAT WE HAVE. LOCAL ONE WISHES TO BE A PARTNER IN ANY WAY WE CAN TO FILL THESE VACANCIES IN CIVIL SERVICE RULES AND CONTINUE TO WORK WITH THE POSITIVE RELATIONSHIP WE HAVE WITH THE CITY MANAGER'S OFFICE AND WORK TOGETHER IN THE FUTURE. THANK YOU FOR YOUR TIME.

>> Mayor A. Ishii: THANK YOU SO MUCH. I APPRECIATE YOUR MESSAGE OF WORKING TOGETHER, TOO. SO THANK YOU. ANY OTHER COMMENTS?

>> City Clerk: ONE HAND RAISED ON ZOOM. KELLY HAMMARGREN.

>> Public Speaker: THE PRESENTATION WAS GREAT, BUT THE PART THAT

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WAS MISSING WAS HOW LONG, ONCE WE GET APPLICANTS IN IS IT TAKING THE CITY TO SCREEN AND ACTUALLY DO THE HIRING PROCESS AND HOW DO WE COMPARE WITH OTHER CITIES? BECAUSE IF WE HAVE QUALIFIED PEOPLE AND IT TAKES MONTHS TO GET THROUGH THE SYSTEM AND WE RISK LOSING THEM IN THE APPLICATION PROCESS. THAT WAS MY ONLY COMMENT. AND I KNOW WE DON'T HAVE A BACK AND FORTH.

>> Mayor A. Ishii: THANK YOU, KELLY.

>> City Clerk: THAT WAS THE ONLY RAISED HAND ON ZOOM FOR THIS ITEM.

>> Mayor A. Ishii: OKAY. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING BEFORE WE HAVE COMMENTS? A SECOND? GREAT. CLERK, CAN YOU TAKE THE ROLE, PLEASE?

>> City Clerk: OKAY. CLOSE THE PUBLIC HEARING, COUNCILMEMBER TAPLIN.

>> T. Taplin: YES.

>> City Clerk: BARTLETT.

>> B. Bartlett: YES.

>> City Clerk: TREGUB.

>> I. Tregub: AYE.

>> City Clerk: O'KEEFE.

>> S. O'Keefe: YES.

>> City Clerk: BLACKABY.

>> B. Blackaby: YES.

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>> City Clerk: HUMBERT.

>> M. Humbert: YES.

>> City Clerk: LUNAPARRA.

>> C. Lunaparra: YES.

>> City Clerk: ISHII.

>> Mayor A. Ishii: OKAY. FOR THIS ONE I DON'T THINK THERE IS PARTICULAR ACTION. I THINK WE ARE JUST RECEIVING. THANK YOU VERY MUCH. I APPRECIATE IT. THANK YOU SO MUCH TO YOUR WORKS, YOUR TEAM, AND BRINGING THE PRESENTATION FORWARD THIS EVENING.

>> Monica Walker: THANKS.

>> Mayor A. Ishii: THANKS. WE'RE MOVING ON TO ITEM 28, ZONING ADJUSTMENTS BOARD OF APPEAL 1950-1988 SHATTUCK AVENUE USE PERMIT ZP2023-0040. AND HERE IS OUR PLANNING DEPARTMENT RIGHT NOW. GREAT TIMING. WERE WE MOVING TOO FAST FOR YOU? [LAUGHTER] OKAY. THANKS. WHENEVER YOU'RE READY.

>> THANK YOU, MAYOR. GOOD EVENING, COUNCILMEMBER'S. I'M JORDAN KLEIN, DIRECTOR OF PLANNING AND I BELIEVE ANNE IS PRESENT AND PRESENTING FOR US. SHE HAS THE SLIDE DECK NOW. TAKE IT AWAY, ANNE.

>> I'M ANNE HURST, THE LADIES -- AN APPEAL OF PROJECT APPROVED BY THE ZONING ADJUSTMENT BOARD FOR NEW DEVELOPMENT AT 1950-1998 SHATTUCK AVENUE. I WILL PROVIDE YOU WITH A BRIEF BACKGROUND ON THE PROJECT AND THE POINTS OF THE APPEAL. THE PROJECT SCOPE

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INCLUDES A 28 STORY NEW CONSTRUCTION MIXED-USE WITH 599 UNITS, 58 UNITS OF WHICH WILL BE DEDICATED TO VERY LOW INCOME OCCUPANCY. THERE'S A TOTAL OF 16,000 FT.^{2} OF COMMERCIAL SPACE. BETWEEN THE GROUND FLOOR AND THE ROOFTOP BAR. THE PROJECT ALSO HAS A LABOR AGREEMENT AS PART OF THE REQUIREMENTS FOR THE COMMUNITY BENEFITS. IT'S IMPORTANT TO NOTE THAT THE FEBRUARY 24 Z.A.P. HEARING THE ZONING ADJUSTMENT BOARD IN FAVOR OF THE PROJECT. SCOPE INCLUDES THE DEMOLITION OF FIVE EXISTING BUILDINGS ENCOMPASSED ON FOUR LOTS. THE FOUR LOTS WOULD BE MERGED INTO ONE PARCEL IN THE NEW BUILDING WOULD BE CONSTRUCTED ON THIS NEWLY CREATED LOTS. THE PROJECT SITE IS LOCATED AT THE NORTHWEST CORNER OF SHATTUCK AVENUE AND UNIVERSITY AVENUE AND GOES ALL THE WAY THROUGH TO BERKELEY WAY. ONE OTHER POINT OF INTEREST IN THIS IS THAT THIS BUILDING IS THE FIFTH OF THE TALL BUILDINGS IDENTIFIED WITHIN THE DOWNTOWN AREA PLAN. THIS FILLS OUT THE FULL REQUIREMENT OF THE TALL BUILDINGS. JUST TO GIVE YOU SOME REVIEW HISTORY, THIS PROJECT WAS SUBMITTED TO THE CITY IN DECEMBER 2023 AND DEEMED COMPLETE IN APRIL 2024. THE CEQA DETERMINATION -- COMMISSION REVIEW FOR DEMOLITION REFERRAL ON JANUARY 6 FOLLOWED BY THE DESIGN REVIEW COMMITTEE REVIEW ON JANUARY 16, AND ULTIMATELY THE Z.A.B. HEARING IN FEBRUARY. IN APPEAL .1, THE APPELLANT STATES THAT THE HEIGHT AND DENSITY OF THE PROJECT IS EXCESSIVE AND WILL NEGATIVELY IMPACT THE CITY.

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THE HOUSING ACCOUNTIBILITY ACT ESTABLISHES THAT THE CITY MAY NOT DISAPPROVE OR REDUCE PROJECT DENSITY WITHOUT MAKING FINDINGS SUPPORTED BY THE PREPONDERANCE OF THE EVIDENCE. THIS FINDING COMPLIES WITH ALL APPLICABLE BUILDING DESIGN STANDARDS AND IN COMPLIANCE WITH PLAN. IN APPEAL .2, APPELLANT HAS REQUESTED ADDITIONAL MEETINGS FOR PERMANENT REVIEW. THE PERMIT STREAMLINING ACT -- HOUSING DEVELOPMENT APPLICATION. OF THE APPEAL HEARING TONIGHT IS THE FOURTH OF THOSE FIFTH MEETINGS. WITH THAT, STAFF RECOMMENDS THAT THE CITY COUNCIL CONDUCT A PUBLIC HEARING AND ADOPT A RESOLUTION AFFIRMING THE Z.A.B. PERMIT. WITH THAT, STAFF IS AVAILABLE FOR QUESTIONS.

>> Mayor A. Ishii: THANK YOU. THANK YOU FOR THE PRESENTATION. IS THE APPELLANT HERE TO SPEAK? YES. YOU WILL HAVE FIVE MINUTES TO PRESENT.

>> GOOD EVENING. I ARGUE THIS PROJECT STRAINS INFO STRUCTURE, WILL NOT BUILD WEEKLY, AND DOES NOT OFFER HOUSING -- GRANT CLASS XXXII EXHIBITING, WHICH BYPASSES ENVIRONMENTAL REVIEW. THE -- THE CITY IS BEING SUED ON GROUNDS THAT EXEMPTION VIOLATED CEQA. SHATTUCK CORNERS IS LIKELY TO -- FOR OTHER PUBLIC PROJECTS. SUCH AN EXEMPTION IS BARRED WHEN DEVELOPMENT CANNOT BE SUPPORTED BY EXISTING INFRASTRUCTURE. BERKELEY FIRE COMMENTED -- SPECIALLY TRAINED HIGH-RISE BATTALION HOUSED AT A NEW STATION CAPABLE WITH EQUIPMENT BILLED BY CAMPUS. SUCH LIMITS POSE A REAL SAFETY RISK

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ESPECIALLY WITH ROADWAYS CONGESTED BY CONSTRUCTION DETOURS. CONSUMERS ARE AT CAPACITY IN WET WEATHER CONDITIONS. IN THE PAST FIVE YEARS, MULTIPLE RAW SEWAGE OVERFLOWS OCCURRED WITH ONE CASE EXPELLING 50 GALLONS. THERE'S NO DOCUMENTED PLAN BY CITY OR UTILITIES TO ADDRESS AT A DEMAND ON FIREFIGHTERS BY SEWAGE. SUCH INFRASTRUCTURE RISK MAKE IT INAPPLICABLE WITH EXEMPTION TO THE SITE BUT ESPECIALLY -- LOOKING TO TRAFFIC AND TRANSIT, EACH NEW HIGH-RISE -- CONSTRAINTS MAY ENCOURAGE PUBLIC TRANSIT USE RATHER THAN CLOGGED PARKING ON THE STREET. BY 2030 -- EXPECTS 300 MILLION OF ACCUMULATIVE DEFICIT. RIDERSHIP COULD EASE DEFICIT; THE CURRENT OPERATION IS QUESTION. IN THE LAST MONTH, B.A.R.T. HAD A SYSTEMWIDE FIVE HOUR SHUTDOWN FROM TECH AND REDUNDANCY FAILURES. WEEKS LATER AN ELECTRICAL FAULT IN B.A.R.T.'S POWER SYSTEM CAUSED 20 MINUTE FIRE WITH EXPLOSIONS DAMAGING 3500 FEET OF SERVICE CABLING. NORMAL OPERATIONS OF B.A.R.T.'S FULL SYSTEM DID NOT RESUME FOR THREE DAYS. AND LESS -- THE LIKELIHOOD IS THAT THE PUBLIC CANNOT BE PROPERLY SERVED. COINCIDING WITH DEVELOPMENTS OR -- IT IS IMPORTANT TO CONSIDER THE ADDITIONAL STRAIN ON INFRASTRUCTURE CONCENTRATED ON ONE AREA. THE 2012 DAP SUPPORTING CURRENT BILL FROM 2009 PRIOR. THE CURRENT DEGREE OF SCHEDULE DEVELOPMENT -- IN LIEU OF AND E.I.R. SHATTUCK ANALYSIS AS PREPARED BY APPLICANT, EVEN APPLICANTS LEAVE A LETTER STATE THE PROJECT PLAN EXCEEDS D.A.P. AND CONTAIN -- NOTING THE BUILD

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IS INCONSISTENT WITH THE D.A.P. DEVELOPMENT STANDARDS AND POLICIES. DESPITE SIZE, THIS ONLY AFFORDS 150 UNITS AT MARKET RATE AND CALIFORNIA SIGNED BERKELEY THE GOAL OF PROVIDING 2446 UNITS PER V.L.I. BY 2031 AND ADD 113 UNITS INTENDED FOR VLI REPRESENTING LESS THAN 5% OF GOAL. LIGHT HAS INCREASED DOWNTOWN AS MANY LONG-TERM BUSINESSES SHUTTERED FOR BILLED. MANY HAVE NOT BEGUN CONSTRUCTION AND COMMERCIAL SPACES THAT LACK SEWAGE OR ELECTRIC CONNECTION. SOME ARE SIMPLY CRATER SITES DECADES LATER. -- WHICH HAS EXISTED AS PART OF BERKELEY'S CULTURAL LANDSCAPE SINCE 1950. EACH RESTAURANT STATED IN INTENT -- McDONALD'S WHICH HAS AT LEAST UNTIL 2032 EXPRESS INTENT TO OPERATE. THIS WOULD DELAY CONSTRUCTION AT LEAST ANOTHER SIX YEARS. SPECULATIVE REAL ESTATE IS THE CASE WITH MANY SLATED TO BELLMAN'S BECAUSE MANY RECENT DOWNTOWN BUILDS ARE HAVING VACANCY ISSUES. DEVELOPERS ARE NOT MOTIVATED TO BUILD WITH CURRENT COSTS OF CONSTRUCTION -- OUTPACE DEMAND WITH UNITS THAT DON'T SEEM TO PROPERLY FIT THE HOUSING AND COMMERCIAL NEEDS OF THE PUBLIC. THESE SITES ARE OFTEN RESOLD IN WAYS THAT BENEFIT INVESTORS, BUT NOT THE PUBLIC. THERE IS NOT AN ON LOCATION TO BUILD DESPITE ENTITLEMENT WITH PERMANENT EXPANSIONS BEING GRANTED YEAR AFTER YEAR. IN SHORT, SHATTUCK CORNERS LIKELY TO NEGATIVELY IMPACT AND UNDERSERVED THE PUBLIC AND THE CEQA EXEMPTION ISN'T PROPERLY APPLIED. THANK YOU.

>> Mayor A. Ishii: THANK YOU. IS THE APPLICANT HERE TO SPEAK?

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YES. COME ON UP. SORRY, I DIDN'T SEE YOU BEHIND JORDAN. THANK YOU.

>> I DID SEND AROUND A HANDOUT JUST BEFORE WE GET STARTED. BUT FIRST OF ALL, THANK YOU, MADAM MAYOR, MEMBERS OF THE CITY COUNCIL. I HAVE TO SAY THAT SINCE 2016 THIS IS PROBABLY THE LEAST AMOUNT OF STRESS I HAVE SHOWN UP AT THE PODIUM WITH. SO I APPRECIATE THE DIRECTION OF OUR NEW CITY COUNCIL AND STAFF. AND I WANT TO THANK STAFF. THE PLANNING DEPARTMENT HAS BEEN THROUGH SOME CHALLENGES OVER THE YEARS. BUT I THINK THAT JORDAN AND ANNE ARE DOING A GOOD JOB OF REBUILDING, AND I THINK OUR CITY MANAGEMENT TEAM AND NEW COUNCIL ARE PROVIDING EXACTLY THE LEADERSHIP THAT'S GOING TO HELP OUR PLAN THRIVE. THIS PROJECT IS THE CULMINATION OF MANY ELEMENTS OF BOTH MY CAREER AND THE CHANGE OF ATTITUDE AROUND HOUSING PRODUCTION IN BERKELEY OVER THE LAST 25 YEARS. FROM 1997-2007, BERKELEY TAUGHT ME THAT NOT ONLY DOES HOUSING PRODUCTION NEED TO BE DISRUPTED HERE, BUT IT NEEDED TO BE DISRUPTED STATEWIDE. THAT'S WHAT I SET ABOUT DOING IN MY CAREER. BETWEEN 1997 AND 19 -- 126 DWELLING UNITS WERE ABOUT TO BE BUILT IN BERKELEY. AS A PRO FORMA CITY PLANNING MANAGER, I DELIVER -- BY USING THE STATE LAWS AND OUR OWN POLICIES. I BROUGHT DEVELOPING FEASIBILITY TO BERKELEY. IT WAS MY PRO FORMA ANALYSIS THAT INFORMED THE DAY BACK THAT 10 STORY BUILDINGS WEREN'T GOING TO PROVIDE COMMUNITY BENEFITS AND

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PROBABLY WEREN'T FEASIBLE TO BUILD. THAT PUSHED THE PLANNING COMMISSION CITY COUNCIL TO LOOK AT AT LEAST 16 STORIES AND FOR THE EIGHT STORY BASED PROJECT HEIGHT THAT WE HAVE TODAY. WITHOUT THAT PRO FORMA ANALYSIS AND USING FEASIBILITY AS A DATA POINT, THAT PLAN WOULD'VE PROBABLY DONE NOTHING FOR OUR DOWNTOWN. I STARTED RHODES PLANNING GROUP IN 2012. WE HAVE PLANNED AND ENTITLED THOUSANDS OF UNITS ALL OVER THE BAY AREA AND NORTH PART OF THE STATE AND IN BERKELEY. AND A HIGH PERCENTAGE OF THEM BELOW MARKET UNITS. I PARTICIPATED IN WRITING STATEWIDE LEGISLATION INCLUDING THE PROCESS ELEMENTS OF SB 30, THE FIVE MEETINGS RULE, LUMINARY APPLICATIONS, AND FREEZING FEES AND STANDARDS. THIS LEGISLATION WAS BORN OF WHAT I SAW HAPPENING HERE IN BERKELEY OFF OF THIS DAIS IN THE LATE 2000 AND EARLY 1990S. THERE'S STILL CHALLENGES. BUILDING, PERMITTING, AND CONSTRUCTION, BUT STATEWIDE HOUSING APPLICATIONS HAVE INCREASED 25% AND 45% MORE HOUSING HAS BEEN BUILT IN 2025 AS COMPARED TO 2017 BEFORE SB 30 AND SB 35 WERE LEGISLATED. TONIGHT'S PROJECT IS A REFLECTION OF THE CHANGED HOUSING EQUITY VALUES OF OUR BERKELEY COMMUNITY AND OF A CHANGED APPROACH TO OUR HOUSING IN CALIFORNIA. WE WORKED HARD WITH STAFF ON THIS PROJECT. WE DOCUMENT THE SCIENCE BEHIND THE EXEMPTION. WE SHOWN IT TO BE A CLASS 32 EXEMPTION FROM CEQA AND THE STATE REQUIRES THEY GRANT THE EXEMPTION IF IT SHOWS THAT IT FITS. WE HAVE USED THE TOOLS

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OF STATE DENSITY BONUS LAW TO SCOPE THE PRODUCT TO BE AS ONE BRC DETECTIVE SAID AS GORGEOUS. TO MAKE THIS APPEAL IS SOMEWHAT PREPOSTEROUS AND I URGE YOU TO MAKE, PREFERABLY THE PLANNING COMMISSION TONIGHT, TO THINK ABOUT TIGHTENING THE ORDINANCE WITH RESPECT TO WHO HAS STANDING OF AN APPEAL OF SUCH A PROJECT IN OUR DOWNTOWN. I HAVE A SIMPLE ASK TONIGHT, AND IT'S THE ITEM THAT I HANDED OUT, AND THAT'S TO MODIFY CONDITION OF ITEM NUMBER 82. THESE PROJECTS ARE NOT EASY TO BUILD. SOME DEVELOPMENT GROUPS COME TO TOWN WITH HUGE BUCKETS OF MONEY. CORE SPACES. THEY GOT RIGHT INTO BUILDING BEFORE THE ENTITLEMENT WAS EVEN GRANTED. OUR GROUP ISN'T LIKE THAT. WE'RE LOCAL. WE'RE SMALLER. WE HAVE A PROVEN TRACK RECORD. IT WILL TAKE US TIME TO TAKE THE INVESTMENT MONEY NECESSARY FOR THIS PROJECT TO WORK. I HAVE ASKED FOR ADDITIONAL TIME FOR THE BUILDING PERMIT SUBMITTAL. I HAVE ASKED FOR ADDITIONAL TIME IN RESPONSES AND ADDITIONAL TIME TO GET UNDER CONSTRUCTION. WE SHOULD ALL BE CELEBRATING THE FACT RIGHT NOW THAT RENTS IN BERKELEY ARE DOWN 20-25% CITYWIDE BECAUSE OF THE NEW HOUSING PRODUCTION WE HAVE SEEN IN THE LAST COUPLE YEARS. WE ARE HITTING THAT SUPPLY SIDE OF THE DEMAND. I ASK YOU TO HELP GIVE THIS PROJECT A CHANCE. THESE ARE SOME OF THE WORST ECONOMIC CIRCUMSTANCES OF THE LAST COUPLE DECADES THANKS TO OUR PRESIDENT AND IT'S A COMPLICATED ENGINEERING PROJECT TO PUT TOGETHER. I AM HAPPY TO ANSWER ANY QUESTIONS YOU

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MAY HAVE.

>> Mayor Ishii: THANK YOU. I WILL OPEN THE PUBLIC HEARING SIDE. AND SEE IF COUNCILMEMBERS HAVE ANY QUESTIONS. COUNCILMEMBER TREGUB?

>> I. Tregub: THANK YOU, I HAVE A QUESTION FOR STAFF AND I HAVE A QUESTION FOR THE APPLICANT. FOR STAFF, I APOLOGIZE I WAS TRYING TO FIND THE TRANSCRIPT OF THE MEETING AND FOR SOME REASON COULDN'T. I NOTICED THERE WERE TWO ABSTENTIONS. I WAS WONDERING IF YOU HAVE RECOLLECTION OF ANY RATIONALE GIVEN ON RECORD FOR ABSTAINING. FOR THE APPLICANT, I WANTED YOU TO CONFIRM, I BELIEVE I SAW IN THE REPRESENTATION THAT YOU INTEND FOR THE SUCCESSOR OF SPATS, WHATEVER IT IS TO BE CITED AND RETAIN THE SAME ABC LICENSE, AS CURRENTLY EXISTS. YOU MENTIONED THIS IN THE HANDOUT BUT AS A MATTER OF PUBLIC RECORD COULD YOU CONFIRM YOU ARE NOT PLANNING TO DEMOLISH ANYTHING UNTIL SUFFICIENT FUNDS ARE ASSEMBLED, THAT THERE IS A REASONABLE CHANCE OF CONSTRUCTION OF THE NEW PROJECT?

>> SHOULD I GO FIRST OR STAFF?

>> THERE WERE NO ABSTENTIONS, WE HAD TWO VACANCIES AT THAT TIME.

>> I. Tregub: I MISREAD THE VOTE COUNT THEN, THANK YOU.

>> WE HAVE BEEN WATCHING SOME OF THE SHUTDOWNS OF THE RETAIL SPACES. DOWNTOWN, I JUST FINISHED MY TENURE ON THE DOWNTOWN BERKELEY BOARD OF DIRECTORS. WE HAVE SOME ISSUES DOWNTOWN WITH

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RESPECT TO RETAILING AND COMMERCIAL. ONE OF THEM, I THINK ABOUT 20% OF THE VACANCIES, 15% ARE DUE TO DEVELOPMENT PROJECTS THAT ARE STALLED OUT. ONE CUT POWER THAT PROBABLY ISN'T MOVING FORWARD, THE ONE AT ALLSTON AND SHATTUCK HAS GONE BACK TO THE DEVELOPMENT COMPANY. THAT'S LOW-HANGING FRUIT FOR SOMEONE TO TAKE THAT TALL BUILDING. SOME OF THOSE BUSINESSES HAVE BEEN FIGHTING IT OUT FOR A WHILE, NOT THE LEAST OF WHICH IS SPATS. ONE NEW BUSINESS HAS OPENED ON THE STREET IN THE LAST FEW MONTHS AND WE ARE ACTIVELY LOOKING FOREVER OTHER TENANTS. WE KNOW THIS IS GOING TO TAKE A COUPLE OF YEARS TO GET BUILDING PLANS TOGETHER AND TO GET FINANCING TOGETHER FOR THIS PROJECT. THERE'S NO WAY WE ARE GOING TO CUT POWER AND EMPTY THOSE SPACES. IF THIS PROJECT NEVER HAPPENS THOSE TENANTS CONTINUE TO OPERATE IN THOSE SPACES AS THEY HAVE BEEN AND MAYBE WE CAN GET MORE IN THERE. BUT WE FULLY INTEND TO PUSH THIS PROJECT FORWARD AND WE AREN'T GOING TO SHUT THOSE BUSINESSES DOWN UNTIL THE ISSUANCE OF A BUILDING PERMIT IS MORE IMMINENT, MUCH, MUCH MORE IMMINENT.

>> Mayor Ishii: THANK YOU. THANKS FOR THAT.

>> I. Tregub: ONE MORE QUESTION FOR STAFF, ACTUALLY. IN RESPONSE TO THE PROPOSED MODIFICATION OF CONDITION 82. STAFF, WAS THIS PROPOSAL SHARED WITH YOU? AND IF SO, DO YOU HAVE ANY OPINIONS ON IT?

>> I BELIEVE WE ARE JUST SEEING IT FOR THE FIRST TIME TODAY BUT

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WE HAVE NO OBJECTIONS.

>> I. Tregub: OKAY, THANK YOU.

>> Mayor Ishii: YES, COUNCILMEMBER BARTLETT?

>> B. Bartlett: THANK YOU. REGARDING THE CONDITION 82 CHANGE. ARE YOU ABLE TO JUST EXPLAIN IT TO US?

>> SURE. SO THE TIME LIMITS FOR BUILDING PERMIT, FOR PURSUIT OF A BUILDING PERMIT, I THINK REALLY, THE INTENT IS SO AN APPLICANT WON'T SIT ON AN ENTITLEMENT. THIS IS PARTICULARLY IMPORTANT FOR THESE VERY TALL BUILDINGS AUTHORIZED UNDER THE DOWNTOWN AREA PLAN BECAUSE THERE'S ONLY FIVE SLOTS, AS WE NOTED. WITH THIS ENTITLEMENT, ALL THE SLOTS WILL BE TAKEN. SO WE DON'T WANT PROJECTS JUST SITTING ON THEM, SO WE ESTABLISH TIME LIMITS. IT TAKES A WHILE. I THINK THIS EXTENDED PERIOD IS NOT ATYPICAL FOR THE BUILDING TIMELINE FOR GETTING THE PERMIT. THE CITY HAS SPENT A LOT OF TIME ON THIS ENTITLEMENT. AND SO, WE WANT THE SPONSOR TO HAVE THE OPPORTUNITY TO DO THE WORK THEY NEED TO DO ON THEIR END TO SECURE THE BUILDING PERMITS AND LINE UP THE FINANCING TO MAKE THE PROJECT A REALITY.

>> B. Bartlett: ONE MORE QUESTION FOR THE YOUNG MAN HERE. I'M CURIOUS, WHAT WAS THE MAIN IMPETUS FOR YOUR CHALLENGE TO THE PROJECT? I APPRECIATE YOUR LANGUAGE TOO WHEN YOU SPOKE. I'M JUST REALLY CURIOUS.

>> THANK YOU. WELL, I JUST WANT TO SEE PEOPLE PROPERLY HOUSED.

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I'M HAPPY THAT RATES THROUGHOUT THE CITY HAVE BEEN GOING DOWN DUE TO RECENT DEVELOPMENTS. BUT I AM A LOCAL, I WAS BORN AND RAISED OUT HERE, I HAVE ALWAYS LOVED BERKELEY AS MY DESTINATION, THE RECENT YEARS, THE AMOUNT OF VACANCY DOWNTOWN, I'VE BEEN VERY CONCERNED WE ARE PERPETUATING A MODEL WHICH HASN'T PROVEN ANY IMMEDIATE REALITY TO THE ASPIRATIONS, WHICH I AGREE WITH. I THINK YOU KNOW, IDEALLY ALL OF THIS WILL WORK OUT BEAUTIFULLY AND WE HAVE A VERY VITALIZED DOWNTOWN IN BERKELEY, FULL OF BEAUTIFUL VENUES AND CULTURAL, YOU KNOW, ESPECIALLY ALSO JUST THERE NEEDS TO BE A RETURN OF A BROADER DEMOGRAPHIC. IN THE LAST 50 YEARS, YOU KNOW, THE BLACK POPULATION OF BERKELEY HAS HALVED TWICE BETWEEN 1970 AND 2000 AND AGAIN BETWEEN 2000 AND 2020, IT WENT FROM ABOUT A QUARTER TO LIKE 7%. I JUST HAVE TO WONDER IF ANY OF THESE POLICIES ARE WORKING TO SOLVE OR PERPETUATE THAT. I THINK THAT THE STUDENT KIND OF INFLUX IS AT A BIT OF A STALL. AND I DON'T KNOW THAT WE NEED SO MANY MORE OF THESE PROFESSIONALLY-ORIENTED OR STUDENT-ORIENTED LUXURY UNITS WHEN FAMILIES AND WORKING CLASS FAMILIES ARE LEFT A LITTLE BIT UNACCOMMODATED. IF PEOPLE GO INTO THESE OTHER SMALLER UNITS THEY WON'T BE TAKING MULTI-FAMILY OR WHATEVER HOMES THAT COULD BE SHARED BY LARGER GROUP. SO I SEE THE POTENTIAL FOR ALL OF THIS. I JUST WANT TO MAKE SURE THAT POLICIES ARE GUIDING TOWARDS A REALITY AND I'M EXPERIENCING IT AS SORT OF THE OPPOSITE. THANK

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YOU FOR YOUR QUESTION.

>> Mayor Ishii: I'M SORRY, WERE THERE OTHER QUESTIONS FROM COUNCIL? OKAY. OH, WE HAVE NOT TAKEN PUBLIC COMMENT. COUNCILMEMBER, DID YOU HAVE --

>> I WAS GOING TO MOVE TO CLOSE THE PUBLIC HEARING.

>> Mayor Ishii: I WOULD LIKE TO TAKE PUBLIC COMMENT FIRST, THANK YOU. IS THERE ANYONE HERE FOR PUBLIC COMMENT? OR ONLINE?

>> City Clerk: THERE'S ONE HAND RAISED ONLINE. THAT'S KELLY HAMMARGREN. GO AHEAD.

>> SO BERKELEY DOES HAVE A LAPSE PERMIT ORDINANCE, WHICH IS, YOU MUST APPLY FOR A BUILDING PERMIT WITHIN ONE YEAR OF APPROVAL. AND THE CITY OF BERKELEY RARELY ENFORCES THAT ORDINANCE. BUT MR. RHOADES IS ASKING FOR AN EXTENSION AND I GUESS I'M SCRAMBLING HERE TO TRY TO FIND OUT WHAT THAT EXTENSION IS. BUT I DIDN'T HEAR IT. SO, IT WOULD SEEM REASONABLE. I THINK A REASONABLE CHANGE TO THAT ORDINANCE WOULD BE TWO YEARS FROM THE TIME A PROJECT IS APPROVED TO ACTUALLY MOVE FORWARD WITH A PROJECT. WE REALLY DON'T WANT TO SEE ANY MORE HOLES IN THE GROUND, LIKE WE'VE GOT AT THE SITE ON ALSTON AND ACROSS FROM THE LIBRARY. WE DON'T WANT MORE OF THAT. AND WE ALSO DON'T WANT PROJECTS HOLDING A LOT THAT COULD BE DEVELOPED WHEN SOMEBODY ELSE MAY BE ABLE TO BUILD ON THAT LOT, A PROJECT THAT IS LESS AMBITIOUS BUT WOULD SERVE A MORE DIVERSE COMMUNITY THAN WHAT WE ARE BUILDING FOR

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RIGHT NOW. STUDIO APARTMENTS DOESN'T SEEM TO SUPPORT A FAMILY.

AND SO THOSE ARE MY COMMENTS, THANK YOU.

>> Mayor Ishii: THANK YOU. THANKS, KELLY. AND ACTUALLY, IT SAYS TWO YEARS. THAT IS WHAT WAS WRITTEN HERE ACTUALLY ON THE PAPER. SO YOU GOT IT ON THE NOSE. ANY OTHER PUBLIC COMMENT?

>> City Clerk: NO OTHER HANDS RAISED. 16, OKAY. WE

>> Mayor Ishii: OKAY, THEN COUNCILMEMBER, WOULD YOU LIKE TO MAKE THAT MOTION?

>> M. Humbert: SURE, I WOULD LIKE TO MOVE TO CLOSE THE PUBLIC HEARING.

>> Mayor Ishii: SECOND FROM COUNCILMEMBER TAPLIN. CLERK, COULD YOU TAKE THE ROLL, PLEASE?

>> City Clerk: OKAY, TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER TAPLIN?

>> T. Taplin: YES.

>> City Clerk: BARTLETT?

>> B. Bartlett: YES.

>> City Clerk: TREGUB?

>> I. Tregub: AYE.

>> City Clerk: O'KEEFE?

>> S. O'Keefe: YES.

>> City Clerk: BLACKABY?

>> B. Blackaby: YES.

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>> City Clerk: LUNAPARRA?

>> C. Lunaparra: YES.

>> City Clerk: HUMBERT?

>> M. Humbert: YES.

>> City Clerk: AND MAYOR ISHII?

>> Mayor Ishii: YES. ANY COUNCIL COMMENTS? OR I'LL ENTERTAIN A MOTION. YES, COUNCILMEMBER LUNAPARRA?

>> C. Lunaparra: YES, I WANT TO TALK ABOUT SOMETHING SAID A LITTLE EARLIER ABOUT STUDENT HOUSING. I WANT TO EMPHASIZE HOW IMPORTANT IT IS TO BUILD STUDENT HOUSING, THE HOUSING THAT IS BOTH FOR YOUNG PROFESSIONALS AND FOR PEOPLE STUDYING IN OUR CITY. 40% OF U.C. BERKELEY STUDENTS WILL BE FOOD INSECURE AT SOME POINT DURING THEIR TIME AT CAL, 40 PERCENT ARE HOUSING INSECURE, 10% ARE UNHOUSED DURING THEIR TIME AT CAL AND COUNTLESS OTHERS EXPERIENCE LANDLORD HARASSMENT, HABITABILITY ISSUES AND INCREASING RENTS. THEY DESERVE HOUSING AS WELL. I WOULD LIKE TO MAKE A MOTION TO DENY THE APPEAL WITH THE CONDITION OF APPROVAL REQUESTED BY THE APPELLANT. APPLICANT, SORRY.

>> SECOND.

>> Mayor Ishii: YEAH. THAT'S FINE, GO AHEAD. AND THEN COUNCILMEMBER HUMBERT?

>> M. Humbert: I'M IN THE QUEUE? THANK YOU. AT THIS POINT IN THE

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QUEUE. [OFF MIC] [MIC DIFFICULTY] [TECHNICAL DIFFICULTY WITH MIC]

>> Mayor Ishii: ARE YOU SAYING YOU CAN HEAR US NOW? JUST IN TIME. THANK YOU, COUNCILMEMBER HUMBERT. I ALSO SAW COUNCILMEMBER TREGUB'S HAND UP AND THEN COUNCILMEMBER TAPLIN.

>> I. Tregub: THANK YOU. I GUESS PLEASE SEND ME A SIGN IF YOU CAN HEAR ME, BECAUSE IT WAS CUTTING OUT.

>> Mayor Ishii: WE CAN.

>> I. Tregub: OKAY, THANK YOU. I WILL BE SUPPORTING THIS MOTION. I THINK A LOT OF WHAT I WAS GOING TO SAY HAS ALREADY BEEN SAID. DOWNTOWN BERKELEY IS A DISTRICT THAT I HAVE THE HONOR OF SERVING. IT DOES HAVE ITS CHALLENGES, ABSOLUTELY. AND TO KELLY'S POINT IN CONDITION 28 AS MODIFIED, DOES HAVE THE TWO-YEAR PROVISION. BUT THIS IS ACTUALLY ONE OF THE ELEMENTS I'M CONTEMPLATING IN AN ITEM THAT OUR OFFICE WILL BE BRINGING IN THE NEAR FUTURE ON ECONOMIC REVITALIZATION IN THE DOWNTOWN AND OTHER COMMERCIAL DISTRICTS IN BERKELEY. ON THE MERITS OF THE APPEAL, AS WELL, I WILL START BY SAYING WE ALL WANT THE SAME THING. WE WANT A VIBRANT DOWNTOWN BERKELEY WHERE EVERYONE CAN BE HOUSED. HOUSING IS ABUNDANT FOR FOLKS AT ALL INCOME LEVELS AND WHERE SMALL BUSINESSES CAN THRIVE. OBVIOUSLY THERE HAVE BEEN SOME CHALLENGES AND PARTICULARLY RIGHT NOW IT IS AN IMPORTANT TIME TO SUPPORT SOMETHING THAT COULD ACTUALLY BE VIABLE. I'VE SERVED ON

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THE ZAB PRIOR TO COUNCIL SINCE 2012 AND IN THAT TIME STATE LAW HAS CHANGED. AGREE OR DISAGREE WITH THE MERITS OF THE PROJECT ITSELF, AND I ACTUALLY SUPPORT THE PROPOSAL. BUT REGARDLESS, STATE LAW DOES NOT PROVIDE THE DISCRETION THAT LOCAL AGENCIES ONCE USED TO HAVE. AND SO JUST ON THE PARTS OF THE APPEAL THERE IS A LIMIT TO THE NUMBER OF PUBLIC HEARINGS THE STATE ALLOWS THAT IS FIVE. THIS HAS BEEN THROUGH THREE OF THEM. THERE ARE OTHER STATE LAWS THAT DON'T ALLOW LOCAL JURISDICTIONS TO LIMIT HEIGHT WITH CERTAIN PROVISIONS BUT I WOULD ALSO SAY THIS IS THE PLACE TO BUILD A TALL BUILDING. IT IS RIGHT IN THE HEART OF THE DOWNTOWN CORE. AND I COULD REALLY SEE THIS ACTIVATING ONCE FULLY BUILT. THIS VERY IMPORTANT PART OF MY DISTRICT. AND SO, I JUST, I DO WANT TO MAKE SURE THAT WE LEARN FROM WHAT HAS HAPPENED WHERE CAPITAL IS RAISED SUFFICIENTLY BEFORE A DEMOLITION OCCURS. AND I THINK MARK, YOU CERTAINLY, YOU HAVE BEEN PART AND PARCEL TO REVITALIZE DOWNTOWN. YOU CARE ABOUT THIS ISSUE DEEPLY. I HAVE A LEVEL OF CONFIDENCE THAT WILL HAPPEN. THANK YOU, AND I WILL BE SUPPORTING THE MOTION.

>> Mayor Ishii: THANK YOU, COUNCILMEMBER TAPLIN?

>> T. Taplin: THANK YOU, I JUST WANTED TO SAY VERY BRIEFLY. WE OFTEN OR SOMETIMES HEAR PEOPLE CITING THE STRAIN OF GROWTH ON THE FIRE DEPARTMENT, ON UTILITIES AS A PRETEXT TO DENY HOUSING. THE CITY, OUR UTILITY PARTNERS ARE ALL ENGAGED IN EFFORTS TO

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MODERNIZE AND UPGRADE OUR FIRE SERVICE AND OUR INFRASTRUCTURE. I WANT TO SHARE THAT SO PEOPLE OUT THERE AREN'T WORRYING ABOUT THAT. THANK YOU.

>> Mayor Ishii: THANK YOU. ARE THERE OTHER COMMENTS. OKAY, I JUST WANT TO CLARIFY THE MOTION JUST TO MAKE SURE THAT'S SOMETHING WE COULD DO THIS EVENING. AND THAT WAS, OKAY, THAT'S ALL. I JUST WANT TO MAKE SURE. IN THAT CASE THERE'S A MOTION ON THE TABLE. WE HAVE A SECOND. CLERK, COULD YOU PLEASE TAKE THE ROLL?

>> City Clerk: OKAY. COUNCILMEMBER TAPLIN?

>> T. Taplin: YES.

>> City Clerk: BARTLETT?

>> B. Bartlett: YES.

>> City Clerk: TREGUB?

>> I. Tregub: AYE.

>> City Clerk: O'KEEFE?

>> S. O'Keefe: YES.

>> City Clerk: BLACKABY?

>> B. Blackaby: YES.

>> City Clerk: LUNAPARRA?

>> C. Lunaparra: YES.

>> City Clerk: HUMBERT?

>> M. Humbert: YES.

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>> City Clerk: AND MAYOR ISHII?

>> Mayor Ishii: YES. THANK YOU. THANK YOU SO MUCH FOR THE PRESENTATION. OKAY, SO THAT IS ACTUALLY IT FOR OUR AGENDA THIS EVENING, BUT THERE'S PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA. IS THERE ANY PUBLIC COMMENT?

>> [OFF MIC]

>> Mayor Ishii: COULD YOU MAYBE WAIT FOR THAT QUESTION BECAUSE WE HAVE ALREADY -- THANK YOU. ANY OTHER PUBLIC COMMENT HERE IN PERSON OR ONLINE?

>> City Clerk: THERE'S ONE HAND RAISED ONLINE. THAT IS KELLY HAMMARGREN.

>> Mayor Ishii: OKAY, GO FOR IT, KELLY.

>> I DIDN'T REALIZE MY HAND WAS STILL RAISED.

>> Mayor Ishii: OH. THANK YOU FOR YOUR PREVIOUS COMMENTS, THEN.

>> YEAH, SO I MADE MY COMMENT PREVIOUSLY. I GUESS I WOULD JUST SAY I'M REALLY SADDENED BY WHAT IS HAPPENING TO THE PALESTINIANS, IT'S JUST HEARTBREAKING AND IT JUST MAKES ME CRY EVERY DAY. BUT THAT SAID, I WOULD HIGHLY RECOMMEND YOU ALL PICK UP THE BOOK "ONE DAY WHEN IT'S SAFE, WHEN THERE'S NO PERSONAL DOWNSIDE TO CALLING A THING WHAT IT IS, WHEN IT'S TOO LATE TO HOLD ANYONE ACCOUNTABLE, EVERYONE WILL ALWAYS HAVE BEEN AGAINST THIS." BY OMAR EL AKKAD. IT'S A WONDERFUL BOOK. WE READ IT IN BOOK CLUB AND HE DEALS WITH A VERY DIFFICULT SUBJECT IN

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BEAUTIFUL PROSE. SO I HIGHLY RECOMMEND IT. THANK YOU VERY MUCH.

>> Mayor Ishii: THANK YOU, KELLY.

>> City Clerk: OKAY.

>> Mayor Ishii: UNLESS THERE'S ANYONE ELSE ONLINE?

>> City Clerk: NOPE.

>> Mayor Ishii: I WILL ENTERTAIN A MOTION TO ADJOURN. AND REMINDING, SORRY, JUST AS A REMINDER WE ARE ADJOURNING IN MEMORY OF TWO FOLKS FROM EARLIER THIS EVENING.

>> T. Taplin: SO MOVED.

>> M. Humbert: SECOND.

>> City Clerk: TO ADJOURN, TAPLIN?

>> T. Taplin: YES.

>> City Clerk: BARTLETT?

>> B. Bartlett: YES.

>> City Clerk: TREGUB?

>> I. Tregub: AYE.

>> City Clerk: O'KEEFE?

>> S. O'Keefe: YES.

>> City Clerk: BLACKABY?

>> B. Blackaby: YES.

>> City Clerk: LUNAPARRA?

>> C. Lunaparra: YES.

>> City Clerk: HUMBERT?

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>> M. Humbert: YES.

>> City Clerk: AND MAYOR ISHII?

>> Mayor Ishii: YES. THANK YOU EVERYONE. THANK YOU SO MUCH.

[ADJOURNED 8:22 P.M.]

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